# TRAFFICKING OF WOMEN AND CHILDREN: A STUDY OF LEGAL FRAMEWORK, JUDICIAL RESPONSE AND POLICY GAPS IN INDIA

A Dissertation Submitted for Academic Purposes

Submitted by

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## LIST OF ABBREVIATIONS

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|---|---|
| AIR | : All India Report |
| Art. | : Article |
| CEDAW | : Central Adoption Resources Authority Convention on the Elimination of All Forms of Discrimination Against Women |
| CrPC | : Code of Criminal Procedure |
| IPC | : Indian Penal Code |
| ITPA | : Immoral Traffic (Prevention) Act |
| ILO | : International Labour Organization |
| JJ Act | : That is Juvenile Justice (Care and Protection of Children) Act |
| MWCD | : Ministry of Women and Child Development |
| NCW | : National Commission for Women |
| NHRC | : National Human Rights Commission |
| NCRB | : National Crime Records Bureau |
| POCSO | : Protection of Children from Sexual Offences Act |
| SMA | : Special Marriage Act |
| SC | : Supreme Cases |
| SCC | : Supreme Court Cases |
| Sec. | : Section |
| UNCRC | : United Nations Convention on the Rights of the Child |
| U/S. | : Under Section |
| UNODC | : United Nations Office on Drugs and Crime |

## LIST OF CASES

1. Vishal Jeet v. Union of India (1990) 3 SCC 318
2. Gaurav Jain v. Union of India (1997) 8 SCC 114
3. Budhadev Karmaskar v. State of West Bengal (2011) 10 SCC 283
4. Prajwala v. Union of India (2015) 16 SCC 255
5. Bachpan Bachao Andolan v. Union of India (2011)
6. People's Union for Democratic Rights v. Union of India AIR 1982 SC 1473
7. Neeraja Chaudhary v. State of Madhya Pradesh AIR 1984 SC 1099
8. Bandhua Mukti Morcha v. Union of India AIR 1984 SC 802
9. Lakshmi Kant Pandey v. Union of India AIR 1984 SC 469
10. State of Karnataka v. Krishnappa (2000) 4 SCC 75

**INDEX**


| Sr. No. | PARTICULARS | Page No. |
|---|---|---|
| **I** | **DECLARATION** | |
| **II** | **CERTIFICATE** | |
| **III** | **ACKNOWLEDGEMENT** | |
| **IV** | **DISCLAIMER BY RESEARCH SUPERVISOR** | |
| **V** | **LIST OF ABBREVIATIONS** | |
| **VI** | **LIST OF CASES** | |
| **Chapter 1** | **INTRODUCTION TO RESEARCH STUDY** | **1-17** |
| 1.1 | Introduction | 1-4 |
| 1.2 | Significance of the Study | 4-6 |
| 1.3 | Statement of the Problem | 6-8 |
| 1.4 | Aims and Objectives | 8-9 |
| 1.5 | Hypotheses | 9-10 |
| 1.6 | Research Methodology | 10 |
| 1.7 | Scope of the Study | 10-13 |
| 1.8 | Limitations of the Study | 13-14 |
| 1.9 | Review of Literature | 14-17 |
| **Chapter 2** | **HISTORICAL EVOLUTION AND CONCEPTUAL FRAMEWORK OF TRAFFICKING** | **18-39** |
| 2.1 | Introduction | 18-20 |

| | | |
|---|---|---|
| 2.2 | Meaning and Definition of Human Trafficking | 20-23 |
| 2.3 | Historical Evolution of Trafficking | 24-27 |
| 2.4 | Forms of Trafficking Affecting Women and Children | 27-29 |
| 2.5 | Structural Causes and Drivers of Trafficking | 30-31 |
| 2.6 | Patterns of Trafficking in India | 31-32 |
| 2.7 | Consequences of Trafficking for Women and Children | 32-35 |
| 2.8 | Technology and the Changing Dynamics of Trafficking | 35-37 |
| 2.9 | Conclusion | 37-39 |
| **Chapter 3** | **LEGAL FRAMEWORK: DOMESTIC LEGISLATION AND INTERNATIONAL OBLIGATIONS** | **40-77** |
| 3.1 | Introduction | 40-43 |
| 3.2 | Constitutional Provisions Relating to Trafficking | 43-47 |
| 3.3 | Immoral Traffic (Prevention) Act, 1956 | 48-56 |
| 3.4 | Provisions under Indian Penal Code and Bhartiya Nyaya Sanhita on Trafficking | 57-65 |
| 3.5 | Protection of Children from Sexual Offences Act, 2012 (POCSO) | 65-68 |
| 3.6 | Juvenile Justice (Care and Protection of Children) Act, 2015 | 68-69 |

| | | |
|---|---|---|
| 3.7 | Bonded Labour System (Abolition) Act, 1976 | 69-71 |
| 3.8 | International Legal Framework | 71-77 |
| **Chapter 4** | **JUDICIAL RESPONSE: CASE LAW ANALYSIS AND JUDICIAL TRENDS** | **78-110** |
| 4.1 | Introduction | 78-80 |
| 4.2 | Public Interest Litigation and Judicial Intervention in Trafficking Cases | 80-85 |
| 4.3 | Landmark Supreme Court Judgments | 85-99 |
| 4.4 | High Court Jurisprudence on Trafficking | 99-106 |
| 4.5 | Judicial Trends and Critical Evaluation | 106-108 |
| 4.6 | Additional Judicial Interventions in Combating Human Trafficking | 109-110 |
| **Chapter 5** | **POLICY GAPS AND IMPLEMENTATION FAILURES** | **111-138** |
| 5.1 | Introduction | 111-113 |
| 5.2 | Fragmentation within the Legal Framework | 113-117 |
| 5.3 | Limitations in Enforcement and Institutional Coordination | 117-123 |
| 5.4 | Challenges in Victim Protection and Rehabilitation | 123-128 |
| 5.5 | Assessment of Government Rehabilitation and Prevention Schemes | 128-133 |

| | | |
|---|---|---|
| 5.6 | Deficiencies in Data Collection and Policy Planning | 134-138 |
| **Chapter 6** | **FINDINGS, SUGGESTIONS AND CONCLUSION** | **139-160** |
| 6.1 | Introduction | 139-140 |
| 6.2 | Major Findings of the Study | 140-143 |
| 6.3 | Suggestions and Policy Recommendations | 134-145 |
| 6.4 | Legislative Reforms | 145-148 |
| 6.5 | Suggestions and Legal Reforms | 148-151 |
| 6.5 | Conclusion | 152-153 |
| | **BIBLIOGRAPHY** | **154-160** |

# CHAPTER 1

# INTRODUCTION TO RESEARCH STUDY

***"Trafficking in persons is an obscenity. It treats people as objects to be exploited. It destroys families, undermines communities, and poses a severe threat to the dignity and well-being of all people."***

## 1.1 Introduction

India's encounter with human trafficking is not a problem that arrived with globalisation or the expansion of digital networks. It is a crisis rooted in the country's own historical and structural realities — in the persistence of caste-based marginalisation, in acute rural poverty, in deeply gendered social hierarchies, and in the chronic failure of the state to enforce the rights it promises on paper. What distinguishes trafficking from many other crimes is that it does not merely exploit individual victims; it exploits entire systems of inequality. To examine trafficking in India is, therefore, to examine India itself.

This research is motivated by a discernible gap between legal aspiration and legal reality. India possesses a constitutional prohibition on trafficking under Article 23, reinforced by a body of criminal legislation spanning over six decades. The Immoral Traffic (Prevention) Act, 1956 laid the earliest statutory foundation. The Criminal Law (Amendment) Act, 2013 then introduced Sections 370 and 370A into the Indian Penal Code, providing a broader definition of trafficking aligned with international standards. Most recently, and most significantly for the contemporary legal landscape, the

Bharatiya Nyaya Sanhita, 2023 (hereinafter BNS) came into force on July 1, 2024, replacing the Indian Penal Code in its entirety. Section 143 of the BNS now constitutes the primary legislative provision on trafficking of persons, defining the offence as the recruitment, transportation, harboring, transfer, or receipt of any person through means such as threats, force, coercion, abduction, fraud, deception, abuse of power, or inducement, for the purpose of exploitation. Section 144 of the BNS separately penalises the sexual exploitation of trafficked persons. Together, these provisions represent the current operative law and must be at the centre of any analysis of India's anti-trafficking legal framework.

The BNS's formulation in Section 143 carries several notable advances over its predecessor. Explanation 1 to Section 143 expands the definition of 'exploitation' to include not only physical and sexual exploitation, slavery, and servitude, but also beggary — a form of trafficking that was conspicuously absent from IPC Section 370 despite being widespread in India's urban centres. Explanation 2 makes explicit what was previously a matter of judicial interpretation: that the consent of the victim is immaterial to the determination of the offence. Furthermore, Section 143(7) imposes natural life imprisonment on any public servant or police officer found to be involved in trafficking — a provision that directly addresses the institutional corruption identified as a structural enabler of trafficking in numerous judicial decisions and policy assessments. Additionally, Section 111 of the BNS, which creates a new offence of organised crime applicable when criminal activity is carried on by a syndicate as a continuing unlawful activity for material benefit, explicitly enumerates human trafficking for prostitution or ransom as one such activity, enabling prosecutors to pursue

trafficking syndicates with the full force of organised crime enforcement mechanisms, including property forfeiture.

The enactment of the BNS does not render prior judicial decisions obsolete — those judgments continue to inform the interpretive principles applicable under the new law — but it does fundamentally change the statutory reference point for all future prosecution and adjudication. A dissertation that analyses India's anti-trafficking legal framework without accounting for the BNS would be examining a framework that no longer operates as current law. This research therefore treats BNS Sections 143, 144, and 111, alongside Sections 95 to 99 governing offences against children, as the primary criminal law instruments while retaining the historical analysis of IPC provisions to illuminate the developmental arc of India's legislative response.

India's position within the global trafficking landscape remains structurally unchanged by these legislative developments. The country simultaneously produces, receives, and serves as a transit corridor for trafficked persons. Internal movement — from economically distressed rural districts in states such as Jharkhand, West Bengal, Odisha, and Bihar towards metropolitan labour markets — accounts for the majority of trafficking activity. Cross-border flows, particularly from Nepal and Bangladesh, add a further dimension requiring bilateral legal cooperation. Women and girls are trafficked primarily into commercial sexual exploitation, forced domestic labour, and coerced marriage; children are exploited in bonded labour, begging rings, and through digital recruitment channels. The clandestine

nature of these networks, combined with the vulnerability of victims, makes detection and prosecution persistently difficult.

This research undertakes a structured examination of three interlocking dimensions of India's response: the legal framework governing trafficking, now headed by the BNS; the nature and limits of judicial intervention in trafficking-related matters; and the policy gaps that allow exploitation to persist even where laws nominally prohibit it. The approach is doctrinal and comparative, combining analysis of Indian statutory provisions and judicial pronouncements with insights drawn from the United States' Trafficking Victims Protection Act, Sweden's Nordic Model, and the European Union's Anti-Trafficking Directive 2011/36/EU. A central argument threading through this research is that effective anti-trafficking law cannot be built on criminal sanctions alone. The BNS has improved India's legislative text substantially; the task now is to build the institutional infrastructure, the coordinated enforcement capacity, and the survivor-centred policy architecture that can make that text effective.

## 1.2 Significance of the Study

The intellectual justification for a study of this kind does not rest on the novelty of the topic. What justifies renewed scholarly engagement is the inadequacy of existing responses and the need for integrated legal and policy analysis that moves beyond compartmentalised treatments of the problem. The enactment of the BNS in 2023, and its commencement in July 2024, creates an additional reason for contemporary academic examination: the replacement of the IPC with an entirely new criminal code demands

scholarly assessment of whether the new framework constitutes a genuine improvement over what it replaces and what structural gaps remain unaddressed.

The study holds significance, first, because of the scale of the problem in India. National Crime Records Bureau data on trafficking-related offences captures only cases that enter formal criminal documentation — a small and systematically unrepresentative fraction of actual trafficking. Official data substantially understates the prevalence of trafficking, and the gap between reporting and reality reflects a failure not only of policing but of the legal culture surrounding victim protection. Any honest legal analysis must begin from this reality.

From a statutory law standpoint, the study contributes to understanding how the BNS's trafficking provisions — particularly the graduated sentencing structure of Section 143, the consent clarification in Explanation 2, the expansion to include beggary, and the organised crime framework of Section 111 — represent developments over the IPC framework, and where the new code's limitations lie. The study also examines the child-specific provisions of the BNS, particularly Sections 95 to 99, which govern procuration of children, hiring children to commit offences, and the selling and buying of children for prostitution. These provisions, scattered across Chapter V of the BNS under the heading of offences against women and children, must be read alongside Section 143 to understand the complete architecture of child trafficking law under the current statutory regime.

The study's significance for judicial research lies in its examination of PIL jurisprudence developed under the IPC framework and its continued

applicability under the BNS. Courts are now operating in a transitional environment — cases registered before July 2024 proceed under the IPC, while later cases are governed by the BNS. Understanding how judicially-developed principles on consent, coercion, victim protection, and institutional accountability translate between the two statutory frameworks is a practical question that courts, prosecutors, and legal practitioners require guidance on.

Finally, the study contributes to policy discourse at a moment when both the legislative landscape and its institutional infrastructure are in flux. The BNS has been enacted; the comprehensive Trafficking in Persons (Prevention, Care and Rehabilitation) Bill has not. By identifying what the BNS has achieved and what it has not addressed, this research aims to provide a detailed analytical foundation that could inform both the Bill's eventual enactment and the administrative reforms that must accompany it.

### 1.3 Statement of the Problem

The central problem this research addresses is not the absence of law, but the failure of law to function. India has, on paper, a substantial anti-trafficking legal architecture. Article 23's constitutional prohibition is non-derogable. BNS Section 143 provides a broad and internationally-aligned definition of trafficking with a graduated sentencing structure that imposes severe penalties for the most serious forms of the offence. Section 111's organised crime provision explicitly encompasses human trafficking and enables property forfeiture against trafficking syndicates. Sections 95 to 99 address child-specific trafficking offences with penalties ranging up to fourteen

years' rigorous imprisonment. POCSO, the JJ Act, and the Bonded Labour System (Abolition) Act collectively cover major forms of exploitation involving women and children. Yet convictions in trafficking cases remain rare, rehabilitative support for survivors remains patchy, and trafficking networks continue to operate with a degree of impunity that no serious legal system should tolerate.

This gap between legal text and legal reality is not accidental. It is produced by a set of specific, identifiable failures that this research investigates. The first is legislative fragmentation. Despite the BNS's improvements, India still lacks a single comprehensive anti-trafficking statute. The ITPA 1956 continues in force alongside BNS Section 143, the JJ Act addresses child protection under a separate welfare framework, and the Bonded Labour Act governs labour exploitation under yet another institutional regime. The BNS has strengthened individual provisions without resolving the structural fragmentation between these parallel legislative tracks.

The second failure is institutional. Anti-Human Trafficking Units exist in several states but are inadequately staffed, poorly trained, and insufficiently coordinated with the labour, child protection, and welfare agencies whose cooperation is essential for effective trafficking investigations. The BNS's Section 111 organised crime provision creates powerful new enforcement possibilities, but those possibilities will remain unrealised if investigators lack the training to build organised crime cases against trafficking syndicates.

Third, victim protection mechanisms remain structurally underdeveloped. The BNS's Explanation 2 to Section 143 clarifies that consent is immaterial,

and Section 143(7) creates a severe deterrent against official complicity in trafficking. But the law contains no victim identification protocol, no mandatory shelter provision, no survivor cooperation mechanism of the kind that enables trafficking victims to participate in prosecution without fear of reprisal, and no non-prosecution guarantee for offences committed as a direct consequence of being trafficked. Legislative text that does not provide for these supports will fail survivors however severe its sentencing provisions become.

Fourth, and most fundamentally, the data situation is deeply problematic. Credible, comprehensive, disaggregated data on trafficking patterns, victim demographics, prosecution outcomes, and rehabilitation results does not exist at a national level. The BNS creates no data collection obligation. Policy cannot be evidence-based where evidence is not generated, and this deficiency perpetuates a cycle in which interventions are designed without reliable information about the problem they are intended to address.

### 1.4 Aims and Objectives of the Study

The primary aim of this research is to critically examine the trafficking of women and children in India through an analysis of the legal framework, judicial response, and policy implementation mechanisms.

The specific objectives of the study include:

1. To analyze the legal framework governing trafficking of women and children in India.

2. To examine relevant international conventions and India's obligations under international law relating to trafficking.
3. To study judicial responses and landmark court decisions concerning trafficking cases.
4. To identify gaps and inconsistencies in existing anti-trafficking legislation and enforcement mechanisms.
5. To evaluate the effectiveness of policy initiatives and rehabilitation programs for trafficking survivors.
6. To propose legal and policy reforms aimed at strengthening the prevention and prosecution of trafficking and improving victim protection mechanisms.

## 1.5 Hypotheses

1. The fragmented nature of India's anti-trafficking legal framework contributes to inconsistent enforcement and prosecution of trafficking offences.
2. Judicial activism has played a significant role in strengthening victim protection and shaping anti-trafficking jurisprudence in India.
3. Policy initiatives aimed at rehabilitation of trafficking survivors remain insufficient due to weak implementation and institutional coordination.

4. Adoption of comprehensive legislative reforms and integrated policy mechanisms can significantly improve India's response to trafficking of women and children.

### 1.6 Research Methodology

The present study adopts a **doctrinal research methodology**, focusing primarily on the analysis of legal texts, judicial decisions, and scholarly literature related to trafficking of women and children.

The research relies on **secondary sources of data**, including:

- Constitutional provisions and statutory enactments
- Judicial decisions of the Supreme Court and High Courts
- International conventions and treaties
- Academic books and journal articles
- Reports published by governmental and international organizations such as UNODC, ILO, and NCRB
- Policy documents and government schemes relating to anti-trafficking initiatives

The study also employs **comparative legal analysis** to evaluate India's anti-trafficking framework in relation to international standards and best practices adopted in other jurisdictions.

## 1.7 Scope of the Study

The present research investigates the issue of trafficking of women and children in India by focusing on the legal and institutional mechanisms designed to address this form of exploitation. Human trafficking involves a wide range of activities including recruitment, transportation, and exploitation of vulnerable individuals through coercion, deception, or abuse of power. Because of its complex nature, trafficking intersects with multiple areas of law such as criminal justice, human rights protection, labour regulation, and child welfare. The scope of this study is therefore defined primarily by its examination of the legal structures and policy responses developed to combat trafficking within the Indian context.

A central aspect of the research is the analysis of **domestic legislation that governs trafficking-related offences**. The study evaluates statutory provisions contained in key laws that address exploitation and protection of vulnerable groups. These include the *Immoral Traffic (Prevention) Act, 1956*, relevant provisions of the *Bhartiya Nyaya Sanhita and Indian Penal Code*, the *Protection of Children from Sexual Offences Act, 2012*, the *Juvenile Justice (Care and Protection of Children) Act, 2015*, and the *Bonded Labour System (Abolition) Act, 1976*. Each of these statutes addresses particular dimensions of trafficking, such as sexual exploitation, child abuse, forced labour, and victim rehabilitation. By examining these legislative frameworks, the study assesses the extent to which Indian law is capable of addressing the varied manifestations of trafficking.

The scope of the research also extends to the **constitutional framework that provides protection against exploitation**. Constitutional provisions

that prohibit trafficking and forced labour serve as the foundation upon which many anti-trafficking laws have been developed. These constitutional guarantees are significant because they frame trafficking not merely as a criminal offence but as a violation of fundamental rights. The study therefore considers how constitutional principles related to dignity, equality, and freedom influence legislative and judicial approaches to combating trafficking.

In addition to legislative analysis, the research examines the **contribution of the judiciary in shaping anti-trafficking jurisprudence**. Courts in India have played an important role in interpreting laws relating to trafficking and in directing authorities to take measures for the protection and rehabilitation of victims. Judicial decisions delivered by the Supreme Court and various High Courts provide important insights into how the legal system addresses complex issues such as victim identification, rehabilitation, and institutional accountability. The study therefore analyses selected landmark judgments to understand the evolving judicial perspective on trafficking.

The research further explores **policy initiatives and administrative mechanisms implemented by the government to prevent trafficking and assist survivors**. Programs designed to provide shelter, counselling, and vocational training to victims are examined in order to evaluate their effectiveness in promoting long-term rehabilitation. The study also considers the functioning of enforcement institutions responsible for implementing anti-trafficking measures.

While the principal focus of this research remains on India, the scope of the study also includes a **comparative examination of selected international**

**approaches** to combating trafficking. Legal frameworks developed in other jurisdictions provide useful insights into how different countries address trafficking through legislative and policy reforms. Comparative analysis enables the identification of practices that may be adapted or considered in strengthening India's anti-trafficking framework.

It is important to note that the research adopts a **doctrinal and analytical approach**, relying primarily on statutory materials, judicial decisions, government reports, and scholarly writings. The study does not involve field-based empirical research or direct interaction with victims of trafficking. Instead, the focus remains on evaluating legal and policy structures in order to identify gaps and propose reforms that could improve the effectiveness of anti-trafficking efforts.

In summary, the scope of the present study is confined to examining the **legal, judicial, and policy dimensions of trafficking of women and children in India**, while drawing limited comparative insights from international frameworks to develop recommendations for strengthening existing mechanisms.

### 1.8 Limitations of the Study

While the research attempts to provide a comprehensive analysis of trafficking laws and policies in India, certain limitations must be acknowledged.

First, the study relies primarily on secondary sources, which may not fully capture the experiences of trafficking survivors or the operational challenges

faced by enforcement agencies. Second, the availability of reliable and consistent statistical data on trafficking remains limited, as trafficking is often underreported. Third, the scope of the research is restricted to legal and policy analysis within the Indian context, and therefore does not include extensive empirical fieldwork or interviews.

Despite these limitations, the study seeks to provide a meaningful contribution to the understanding of trafficking in India by critically examining the legal and institutional frameworks governing this issue.

### 1.9 Review of Literature

The scholarly literature on human trafficking spans criminology, international law, feminist legal theory, development economics, and human rights studies. The enactment of the BNS in 2023 adds a new dimension to the literature specific to Indian anti-trafficking law: the need for commentary that assesses the new code's provisions against both the prior IPC framework and international standards. At the time of this research, scholarly analysis of BNS Sections 143, 144, and 111 in the trafficking context remains limited, since the provisions are recent. This study therefore contributes to an emerging conversation about the BNS's adequacy as an anti-trafficking instrument, building on the substantial body of scholarship that engaged with the IPC framework.

Among foundational works in the field, Kevin Bales's scholarship on contemporary forms of slavery argues that modern exploitation is sustained through economic control, debt manipulation, and the exploitation of social

vulnerability — mechanisms that are less visible than historical slavery but no less coercive in their practical effect. Bales's framework is relevant to the BNS's definitional structure: the inclusion of beggary and servitude within the Explanation 1 definition of 'exploitation' in Section 143 reflects precisely the insight that trafficking encompasses forms of control that do not involve overt physical force. The critical limitation of Bales's work for this study is that it engages with law primarily as a diagnostic instrument rather than as a domain of analysis in its own right.

Siddharth Kara's investigation of sex trafficking in South Asia argues that trafficking persists because it is extraordinarily profitable and relatively low-risk for perpetrators. BNS Section 111's organised crime provision and its property forfeiture mechanism directly engage with the economic logic Kara identifies: targeting the financial infrastructure of trafficking networks, rather than merely prosecuting individual traffickers, is a recognition that profitability is the engine of the enterprise. Kara's work, however, does not engage with Indian legal doctrine or the specific institutional failures of the Indian enforcement system — gaps this study directly addresses.

Within the Indian legal scholarship, Upendra Baxi's work provides a foundational perspective on the relationship between law and social transformation. Baxi argues that constitutional rights guarantees require institutional will, resource investment, and political commitment to translate into lived protection. Applied to the BNS, this perspective explains why the improvements in Section 143's sentencing structure and Section 111's organised crime provisions will not automatically produce better outcomes: institutional will and enforcement capacity are not created by legislative text

alone. The BNS may have closed some legal gaps; Baxi's framework suggests that the institutional gaps it leaves open are the more consequential obstacles.

Research published in the Indian Law Review and allied journals has documented the fragmented character of India's anti-trafficking statutory framework. These studies observe that the ITPA, IPC Sections 370 and 370A, POCSO, the JJ Act, and the Bonded Labour Act collectively address most major forms of trafficking without constituting a coherent integrated regime. The BNS's enactment has partially but not fully addressed this critique: Section 143's consolidated definition is an improvement, but the ITPA, POCSO, and the Bonded Labour Act remain in force as separate statutory tracks, and the BNS creates no mechanism for coordinating their application in cases that engage multiple forms of exploitation simultaneously.

Comparative scholarship on the United States' TVPA, Sweden's Nordic Model, and the EU Anti-Trafficking Directive provides benchmarks against which the BNS framework can be assessed. The TVPA's 'three Ps' structure demonstrates that effective anti-trafficking legislation must integrate prevention, prosecution, and protection within a unified framework — the BNS addresses prosecution but leaves prevention and protection largely to other instruments. The EU Directive's national rapporteur mechanism, requiring systematic data collection and institutional monitoring, has no equivalent in the BNS or in any other current Indian statute. Sweden's demand-reduction approach highlights an aspect of trafficking that the BNS

does not engage at all: the criminalization of demand for sexual services as a strategy to reduce the market that sustains sexual trafficking.

# CHAPTER 2

# CONCEPTUAL FRAMEWORK OF HUMAN TRAFFICKING

***"Exploitation of the weaker by the stronger is a social crime, and the Constitution of India has declared war on it through Articles 23 and 24."***

… Justice V.R. Krishna Iyer

## 2.1 Introduction

Before a legal framework can be evaluated, the phenomenon it seeks to regulate must be understood on its own terms. In the case of human trafficking, this is not a straightforward task. The term 'trafficking' appears, on the surface, to describe a discrete criminal act — the movement of a person from one place to another for purposes of exploitation. But this formulation obscures more than it reveals. Trafficking is better understood as a process: one that begins in conditions of vulnerability, proceeds through manipulation or coercion, and terminates in circumstances of sustained exploitation from which exit is difficult or impossible. To analyse trafficking solely as a crime is to mistake the final chapter for the whole story.

India's legal definition of trafficking has evolved considerably over time, and the most current articulation appears in Section 143 of the Bharatiya Nyaya Sanhita, 2023. This provision defines the offence through three interconnected elements: the act of recruitment, transportation, harboring, transfer, or receipt of a person; the means employed, which include threats, force, coercion, abduction, fraud, deception, abuse of power, or inducement; and the purpose of exploitation. Explanation 1 to Section 143 defines

'exploitation' as encompassing any act of physical exploitation, any form of sexual exploitation, slavery or practices similar to slavery, servitude, forced beggary, or forced removal of organs. The explicit inclusion of beggary — absent from the predecessor provision under IPC Section 370 — marks a significant doctrinal advance, acknowledging a form of trafficking particularly prevalent in Indian cities but previously occupying an ambiguous legal space. Explanation 2 to Section 143 further clarifies that the consent of the victim is wholly immaterial to determination of the offence, codifying the principle that apparent consent obtained through deception or exploitation of vulnerability cannot legitimise the underlying exploitation.

The legal definition, however, should be distinguished from the social reality of trafficking, and that distinction is analytically important. A person may be subject to conditions that any reasonable observer would recognise as exploitative without those conditions crossing the legal threshold of Section 143. Conversely, trafficking law may sometimes be applied to situations that lack the sustained coercive character it is designed to address. This permanent gap between legal category and social reality is not a defect to be apologised for; it is a feature of the relationship between law and social life that this research keeps in view throughout.

Within India, the conceptual understanding of trafficking cannot be separated from the country's long history of caste-based labour exploitation, from the persistence of patriarchal social structures that systematically limit women's economic options, and from the scale of poverty that generates a steady supply of individuals whose vulnerability can be monetised by organised criminal networks. Section 111 of the BNS, which classifies

human trafficking as organised crime when conducted by a syndicate as a continuing unlawful activity for material benefit, reflects a belated legislative recognition that trafficking is not a series of isolated criminal acts but a systematic enterprise. The organised crime framework introduces the possibility of property forfeiture against trafficking networks, targeting the financial infrastructure that makes exploitation profitable — an enforcement dimension entirely absent from the earlier IPC framework.

This chapter establishes the conceptual foundation for the remainder of the research. By examining how trafficking is defined, how it has evolved historically, what forms it takes in practice, and what structural conditions sustain it, the chapter clarifies the phenomenon that the legal and policy frameworks analysed in later chapters are designed to address.

## 2.2 Meaning and Definition of Human Trafficking

Defining human trafficking has been a central challenge in international and domestic legal discourse. Earlier legal frameworks often focused on specific forms of exploitation—particularly prostitution—without recognizing the broader spectrum of activities through which trafficking may occur. Over time, international law has adopted a more comprehensive definition that captures the multiple stages and methods involved in trafficking.

One of the most influential definitions appears in the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons**, adopted in 2000. The Protocol describes *trafficking as a process involving the recruitment, movement, or harbouring of individuals through coercion,*

*deception, abuse of authority, or exploitation of vulnerability for the purpose of exploitation*[1]. This formulation identifies three essential elements: the actions performed by traffickers, the methods used to control victims, and the exploitative objective that motivates the trafficking process.

The adoption of this definition represented an important development in international law because it expanded the scope of trafficking beyond sexual exploitation. Under the Protocol, exploitation may include forced labour, servitude, slavery-like practices, removal of organs, and other forms of coercive exploitation. This broader understanding recognizes that trafficking occurs in multiple economic sectors and affects diverse groups of individuals.

Another significant aspect of the Protocol's definition is the treatment of consent. In many trafficking situations, victims initially agree to travel or accept employment offers proposed by traffickers. However, such consent may be obtained through deception or abuse of vulnerability. International law therefore establishes that consent cannot be considered valid when the means used to recruit or control victims involve coercion, fraud, or manipulation. This principle reflects the recognition that apparent consent may conceal underlying exploitation.

The influence of the Palermo Protocol is evident in the development of anti-trafficking legislation in many countries, including India. Amendments to the **Indian Penal Code in 2013 introduced a revised definition of trafficking under Section 370**, which incorporates many of the elements

[1] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000) art 3.

recognized in international law. *The provision identifies trafficking as the recruitment, transportation, harbouring, transfer, or receipt of a person for purposes of exploitation through methods such as threats, coercion, fraud, deception, or abuse of power*[2]

The revised statutory framework also clarifies that exploitation includes practices such as sexual exploitation, forced labour, slavery-like conditions, and removal of organs. By articulating these elements within a single provision, the amendment sought to move beyond earlier legal approaches that addressed trafficking through scattered offences related to prostitution, kidnapping, or child exploitation.

Nevertheless, applying the legal definition of trafficking in practice presents certain challenges. One difficulty arises from the overlapping nature of trafficking with other criminal offences. For example, trafficking may involve elements of kidnapping, unlawful confinement, forced labour, or sexual assault, each of which may fall under separate legislative provisions. Determining the most appropriate legal charges therefore requires careful assessment of the specific circumstances of each case.

Another challenge relates to the identification of victims. Trafficked persons may initially appear to be voluntary migrants or workers, particularly when they have travelled willingly or accepted employment opportunities. However, once they enter exploitative conditions where their freedom is restricted or their labour is coerced, the situation may fall within the legal definition of trafficking. Recognizing these circumstances requires

[2] Indian Penal Code 1860, s 370 (as amended by Criminal Law (Amendment) Act 2013).

investigators and authorities to look beyond surface-level appearances and examine the conditions under which individuals are working or living.

The distinction between trafficking and migrant smuggling also remains an important aspect of the legal framework. Smuggling generally involves the facilitation of illegal entry into a country in exchange for payment, without necessarily involving exploitation after arrival. Trafficking, on the other hand, is characterized by the intention to exploit individuals through coercive or deceptive practices[3]. While smuggling is primarily treated as a violation of immigration law, trafficking is recognized as a crime against the individual and therefore demands a victim-centred response.

Legal scholars have emphasized that trafficking should be understood not merely as a discrete act but as a process that unfolds over time. The process may begin with recruitment in a vulnerable community, followed by transportation to another location, and culminate in exploitative conditions where the victim's freedom is restricted. Each stage of this process may involve different actors and forms of coercion, making trafficking a particularly complex offence to investigate and prosecute.

In essence, the contemporary definition of trafficking reflects an evolving understanding of exploitation within both legal and human rights frameworks. By recognizing the multiple stages, methods, and objectives involved in trafficking, modern legal definitions aim to capture the complexity of the phenomenon and provide a foundation for more effective legal and policy responses.

[3] United Nations Office on Drugs and Crime, *Global Report on Trafficking in Persons* (2022).

## 2.3 Historical Evolution of Human Trafficking

The exploitation of vulnerable individuals for economic or social gain is not a phenomenon limited to modern societies. Historical records across different civilizations reveal systems of labour control and human exploitation that bear resemblance to contemporary trafficking practices. Although the terminology of "human trafficking" emerged relatively recently within international legal discourse, the underlying dynamics of coercion, control, and exploitation have existed for centuries in various institutional forms.

In earlier historical periods, the most visible manifestation of such exploitation was slavery. Individuals could be treated as property and were frequently bought, sold, or transferred as commodities within social and economic systems that legally sanctioned their subordination. Over time, growing moral, political, and humanitarian movements led to the abolition of formal slavery in many parts of the world during the nineteenth century. However, the elimination of legally recognized slavery did not eradicate exploitative labour practices. Instead, exploitative systems adapted to new economic arrangements that often concealed coercion behind contractual or informal labour relationships[4].

During the colonial period, systems of labour recruitment frequently relied on practices that blurred the line between voluntary migration and coercive labour exploitation. In several colonial economies, labour shortages led to the recruitment of workers from economically disadvantaged regions.

[4] Kevin Bales, *Disposable People: New Slavery in the Global Economy* (University of California Press 2012).

Although these arrangements were often presented as voluntary employment contracts, many workers experienced severe restrictions on mobility, harsh working conditions, and dependency on employers. Such circumstances created environments where exploitation could occur despite the absence of formal ownership of labourers.

Within India, historical patterns of social hierarchy and economic marginalization contributed to conditions that facilitated exploitation. Systems of bonded labour and hereditary occupational structures often tied marginalized communities to exploitative labour arrangements that limited their economic mobility. While these practices were not always conceptualized as trafficking in legal terminology, they involved mechanisms of control and dependency that resemble contemporary trafficking dynamics[5].

Following independence, the Indian constitutional framework sought to address such exploitative practices through explicit legal safeguards. Article 23 of the Constitution prohibits trafficking in human beings and forced labour, reflecting a commitment to protecting individuals from practices that undermine human dignity. This constitutional provision established an important normative foundation for subsequent legislative efforts aimed at combating exploitation.

In the decades that followed, legislative responses to trafficking tended to focus on specific manifestations of exploitation rather than the broader trafficking process. For example, the **Immoral Traffic (Prevention) Act, 1956** was primarily designed to regulate activities associated with

[5] Kamala Sankaran, *Labour Laws in India* (Oxford University Press 2017).

prostitution and to penalize exploitation within the sex trade. Although the legislation represented an early attempt to address certain aspects of trafficking, its scope remained limited because it did not fully account for the diverse forms of exploitation that trafficking may involve.

International developments during the late twentieth century significantly influenced the evolution of anti-trafficking law. Increasing globalization, migration, and transnational criminal activity brought greater attention to trafficking as a global problem requiring coordinated international action. This recognition culminated in the adoption of the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons (2000)**, which introduced a comprehensive framework for addressing trafficking through prevention, criminalization, and victim protection measures[6].

In response to these international developments, India undertook legislative reforms aimed at strengthening its anti-trafficking framework. The **Criminal Law (Amendment) Act, 2013** introduced a revised definition of trafficking under Section 370 of the Indian Penal Code. This amendment broadened the legal understanding of trafficking by recognizing multiple forms of exploitation and by focusing on the entire process through which individuals are recruited, transported, and exploited.

Despite these legal developments, historical patterns of inequality continue to influence contemporary trafficking practices. Socio-economic disparities, gender-based discrimination, and migration pressures create environments where traffickers can recruit vulnerable individuals. Consequently,

[6] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

addressing trafficking requires not only legal enforcement but also broader efforts to reduce structural inequalities that enable exploitation.

## 2.4 Forms of Trafficking Affecting Women and Children

Human trafficking manifests in multiple forms depending on the nature of exploitation involved. Although public discourse frequently associates trafficking with sexual exploitation, empirical research demonstrates that trafficked persons are exploited in a wide range of economic and social contexts. Recognizing these diverse forms is essential for designing legal frameworks capable of addressing the full scope of trafficking activities.

### 2.4.1 Trafficking for Sexual Exploitation

Sexual exploitation remains one of the most visible forms of trafficking, particularly affecting women and girls. In such cases, traffickers often recruit victims through deception, promising employment opportunities, marriage, or educational prospects. Once victims are transported away from their communities, they may be forced into prostitution or other forms of sexual exploitation through violence, intimidation, or debt bondage.

The consequences of sexual exploitation extend beyond immediate physical harm. Victims often experience long-term psychological trauma, health risks, and social stigma that may hinder reintegration into society. The persistence of demand for commercial sexual services combined with

economic vulnerabilities among marginalized populations contributes to the continued prevalence of this form of trafficking[7].

### 2.4.2 Labour Exploitation

Trafficking also occurs in labour markets where vulnerable individuals are compelled to work under coercive conditions. Victims may be exploited in industries such as agriculture, construction, manufacturing, domestic service, or small-scale informal enterprises. In many cases, trafficked workers receive little or no compensation and are subjected to excessive working hours or hazardous conditions.

Labour trafficking frequently involves mechanisms such as debt bondage, where workers are required to repay inflated recruitment costs or fabricated debts. These debts create a cycle of dependency that effectively prevents victims from leaving exploitative employment arrangements.

### 2.4.3 Child Trafficking

Children are particularly vulnerable to trafficking because they depend on adults for protection and decision-making. Child trafficking may occur for purposes such as forced labour, sexual exploitation, illegal adoption, begging networks, or involvement in illicit activities.

International law recognizes the heightened vulnerability of children by establishing that consent is irrelevant in cases of child trafficking. Even where children appear to agree to certain activities, such consent cannot be

[7] Siddharth Kara, *Sex Trafficking: Inside the Business of Modern Slavery* (Columbia University Press 2009).

considered legally valid because children lack the capacity to fully understand the risks associated with exploitation[8].

### 2.4.4 Trafficking for Forced Marriage

In certain circumstances, women and girls may be trafficked for the purpose of forced marriage. This practice often occurs in regions where gender imbalances, poverty, or cultural norms create demand for brides. Victims may be transported across regions or borders and compelled to enter marriages without their genuine consent.

Forced marriage trafficking raises complex legal and social concerns because it combines elements of trafficking, gender-based violence, and domestic exploitation. Victims may face isolation and limited access to legal assistance once placed within private household environments.

### 2.4.5 Organ Trafficking

Another emerging form of trafficking involves the illegal trade in human organs. Individuals experiencing severe economic hardship may be deceived or pressured into selling organs such as kidneys under exploitative conditions. In many cases, the financial compensation promised to victims is significantly lower than the profits obtained by intermediaries involved in organ trade networks.

Organ trafficking illustrates how trafficking can intersect with sophisticated transnational criminal operations involving brokers, medical professionals, and illicit markets.

[8] Convention on the Rights of the Child (1989).

## 2.5 Structural Causes and Drivers of Trafficking

Human trafficking is sustained by a combination of economic, social, and institutional factors that create conditions of vulnerability. Understanding these underlying drivers is crucial for developing strategies that address the root causes of trafficking rather than merely responding to its consequences.

### 2.5.1 Economic Vulnerability

Poverty remains one of the most significant factors contributing to trafficking. Individuals living in economically marginalized conditions may be more willing to accept risky employment or migration opportunities that promise financial improvement. Traffickers exploit this vulnerability by presenting deceptive offers that conceal exploitative intentions[9].

### 2.5.2 Gender-Based Inequality

Gender discrimination plays a substantial role in increasing the vulnerability of women and girls to trafficking. Limited access to education, employment opportunities, and property rights may restrict women's economic independence. In some communities, patriarchal norms further reduce women's autonomy, making them more susceptible to manipulation by traffickers.

### 2.5.3 Educational Disadvantage

Lack of education can limit awareness of trafficking risks and reduce individuals' ability to evaluate employment or migration opportunities critically. Education therefore plays an important preventive role by

[9] Louise Shelley, *Human Trafficking: A Global Perspective* (Cambridge University Press 2010).

equipping individuals with the knowledge and skills needed to recognize deceptive recruitment practices.

### 2.5.4 Migration Pressures

Migration in search of employment often involves reliance on intermediaries who facilitate travel and job placement. When migration occurs through informal or irregular channels, migrants may become dependent on these intermediaries, creating opportunities for exploitation.

### 2.5.5 Organized Criminal Networks

Trafficking frequently involves organized criminal groups that coordinate recruitment, transportation, and exploitation activities. These networks benefit from the profitability of trafficking combined with relatively low risks of detection in regions where law enforcement capacity is limited.

## 2.6 Patterns of Trafficking in India

Trafficking in India reflects complex migration patterns shaped by economic disparities, demographic factors, and regional inequalities. The country simultaneously functions as a place of origin, transit, and destination for trafficked persons.

Many victims originate from economically disadvantaged rural areas where employment opportunities are limited. Recruitment frequently occurs through informal networks or intermediaries who promise employment in urban centres. Once transported to destination areas, victims may be

exploited in sectors such as domestic service, small-scale manufacturing, construction, or commercial sexual exploitation.

Urban centres often function as major destinations for trafficked persons due to the availability of labour markets that operate largely within the informal economy. Weak labour regulation and limited oversight create environments where exploitative employment arrangements can remain hidden.

Cross-border trafficking also occurs between India and neighbouring countries, particularly Nepal and Bangladesh. Geographic proximity and porous borders facilitate the movement of trafficked persons, while economic disparities between regions create incentives for migration.

Trafficking patterns may also intensify in situations involving natural disasters, conflict, or displacement. Communities affected by such events may experience increased vulnerability because individuals face urgent economic pressures and diminished access to institutional support mechanisms[10].

Recognizing these patterns is essential for developing effective prevention and intervention strategies. Coordinated efforts involving law enforcement agencies, social welfare institutions, and civil society organizations are necessary to identify high-risk areas, disrupt trafficking networks, and provide assistance to vulnerable populations.

## 2.7 Consequences of Trafficking for Women and Children

[10] United Nations Office on Drugs and Crime, *Global Report on Trafficking in Persons* (2022).

Trafficking produces consequences that extend well beyond the period of exploitation. The harm experienced by victims frequently continues long after they leave trafficking environments, affecting their health, psychological well-being, social relationships, and economic prospects. Women and children face particularly severe consequences because the exploitation they experience often interacts with pre-existing social inequalities related to gender, age, and economic status.

One of the most immediate effects of trafficking involves **serious threats to physical health and bodily integrity**. Individuals who are trafficked frequently endure hazardous working conditions, physical violence, inadequate nutrition, and absence of medical care. In situations involving sexual exploitation, women and girls may be subjected to repeated abuse, reproductive health complications, and exposure to sexually transmitted diseases. Forced labour trafficking can also involve unsafe workplaces where victims perform demanding tasks without protective equipment or adequate rest. Such conditions may result in chronic health problems that persist even after victims escape exploitation.

In addition to physical harm, trafficking often produces **deep psychological and emotional trauma**. Victims typically experience prolonged exposure to coercion, intimidation, and loss of autonomy, which may lead to anxiety disorders, depression, and post-traumatic stress symptoms. For children, these psychological consequences can be particularly severe because trafficking disrupts their emotional development and sense of security. When exploitation occurs during formative stages of life, the resulting

trauma may influence cognitive development, relationships, and long-term mental health.

The aftermath of trafficking frequently involves **social marginalization**. Survivors returning to their communities may encounter suspicion, stigma, or exclusion, particularly in cases where exploitation occurred in the sex trade. Cultural attitudes surrounding morality and honour may lead communities to blame victims rather than the traffickers responsible for their exploitation. This social rejection can make reintegration extremely difficult and may discourage survivors from reporting crimes or seeking support services.

Economic vulnerability also plays a significant role in shaping the experiences of trafficking survivors. Many individuals return from trafficking situations without financial resources, employment opportunities, or access to education. Without sustainable livelihood options, survivors may remain trapped in cycles of poverty that initially contributed to their vulnerability. In some cases, the absence of long-term rehabilitation programs increases the risk that survivors will be re-trafficked or forced into other exploitative work.

Children who experience trafficking face additional disadvantages because exploitation often interrupts their education and limits opportunities for personal development. When children are removed from school and compelled to work or engage in exploitative activities, their prospects for future employment and social mobility are significantly reduced. This interruption in education can perpetuate intergenerational poverty, thereby reinforcing the structural conditions that enable trafficking to occur.

Trafficking also has wider implications for society as a whole. The existence of organized trafficking networks undermines the rule of law and weakens institutional trust in law enforcement agencies. In many cases, trafficking networks operate in conjunction with other forms of criminal activity, including corruption, document forgery, and illicit financial transactions. These connections illustrate that trafficking should be viewed not only as a human rights violation but also as a threat to governance and social stability.

Addressing the impact of trafficking therefore requires a comprehensive approach that goes beyond criminal prosecution. Effective responses must include medical care, psychological support, education, and economic rehabilitation for survivors. A victim-centred framework that prioritizes dignity, autonomy, and long-term reintegration is essential if survivors are to rebuild their lives and avoid further exploitation.

### 2.8 Technology and the Changing Dynamics of Trafficking

Advancements in communication technology have significantly transformed the operational methods of trafficking networks. Digital platforms have created new opportunities for traffickers to identify potential victims, coordinate activities across geographical boundaries, and conceal exploitative practices from authorities. As a result, the relationship between technology and trafficking has become an increasingly important area of study within both criminology and human rights research.

One of the most notable developments involves the use of **online platforms for recruitment**. Traffickers frequently use social networking websites,

online job portals, and messaging applications to approach potential victims. These platforms allow traffickers to present fraudulent employment opportunities, modelling offers, or marriage proposals that appear legitimate to individuals seeking economic advancement. Because online communication often occurs without face-to-face interaction, traffickers can easily conceal their identities and intentions.

Digital technology also enables traffickers to **manage complex networks of recruitment and transportation**. Encrypted messaging services and online payment systems allow traffickers to communicate with associates and transfer funds with reduced risk of detection. These technological tools facilitate coordination among multiple actors who may operate in different regions or countries, making trafficking networks more difficult for authorities to dismantle.

Another emerging concern relates to the **use of digital platforms to advertise exploitative services**. In cases involving sexual exploitation, traffickers may promote services through websites or online marketplaces that disguise illegal activities under the appearance of legitimate businesses. Such platforms create virtual spaces where exploitation can be organized with minimal direct contact between traffickers and clients.

Children face unique risks in the digital environment because they may be targeted through **online grooming and manipulation**. Traffickers may establish relationships with minors through gaming platforms, social media, or chat applications before persuading them to share personal information or images. These interactions can later be used to coerce children into exploitative situations or to facilitate trafficking.

Despite these risks, technological innovation also offers tools that can assist in **combating trafficking**. Law enforcement agencies increasingly rely on digital forensic techniques, data analysis, and online monitoring to detect suspicious patterns associated with trafficking activities. Similarly, non-governmental organizations use technology to identify victims, provide confidential reporting mechanisms, and coordinate rescue operations.

Public awareness initiatives delivered through digital platforms also play an important preventive role. Educational campaigns that highlight the risks of deceptive recruitment practices can help individuals recognize warning signs and avoid potentially dangerous situations. In addition, digital literacy programs may equip vulnerable communities with the knowledge needed to navigate online spaces safely.

The relationship between technology and trafficking therefore reflects a dual reality. While technological tools have expanded the capabilities of traffickers, they also provide opportunities for more effective detection, prevention, and victim support. Addressing this evolving challenge requires cooperation among governments, technology companies, and civil society organizations to ensure that digital platforms are not misused for exploitative purposes.

## Conclusion

Several points emerging from this chapter deserve emphasis as the research moves to its examination of India's legal and judicial response. First, the diversity of trafficking's forms — sexual exploitation, forced labour, bonded servitude, child trafficking, coerced marriage, forced beggary, organ

trafficking — means that a legal framework capable of addressing only one or two of these forms will leave substantial exploitation untouched. The BNS's Section 143, through its Explanation 1, attempts definitional comprehensiveness by enumerating beggary and forced organ removal alongside sexual exploitation and slavery. This is an improvement over the IPC's narrower formulation, but its value depends entirely on whether investigators are trained to recognise these forms of exploitation and whether prosecutors are willing to invoke Section 143 in their respect. The law has expanded its definitional reach; whether enforcement has followed is the question that subsequent chapters address.

Second, the structural drivers of trafficking — poverty, gender inequality, educational disadvantage, unregulated migration, and organised criminality — cannot be addressed by criminal law alone. Section 111's organised crime framework opens new enforcement possibilities against trafficking syndicates, including the use of forfeiture powers that can disrupt the financial basis of trafficking networks. Whether investigators and prosecutors will deploy these tools effectively against trafficking, rather than limiting their use to drug or extortion cases, is a question of institutional priority rather than legal capacity.

Third, technology has fundamentally altered the operational environment of trafficking in ways that the BNS does not specifically address beyond the general digital offence provisions of the code. Recruitment, coordination, and commercial exploitation now occur across digital channels that existing trafficking-specific provisions were not designed to regulate. A dedicated regulatory response — extending beyond the BNS to include platform

liability frameworks and proactive monitoring obligations — remains an unmet legislative need that the pending comprehensive trafficking legislation should address.

# CHAPTER 3

# LEGAL FRAMEWORK: DOMESTIC LEGISLATION AND INTERNATIONAL OBLIGATIONS

***"The law cannot remain a distant abstraction. It must reach the doorstep of those who have no door."***

… Justice P.N. Bhagwati

## 3.1 Introduction

India's legal response to human trafficking has not been designed as a coherent system; it has accumulated over decades. The result is a statutory landscape that is broad in its geographic reach, varied in its ambitions, and fragmented in its operation. Understanding this landscape requires examining not only what individual statutes say but how they relate to one another — and how the gaps between them are exploited by trafficking networks.

A transformation of foundational significance occurred on July 1, 2024, when the Bharatiya Nyaya Sanhita, 2023 replaced the Indian Penal Code, 1860, as India's primary criminal code. The trafficking provisions formerly located in IPC Sections 370 and 370A are now governed by BNS Sections 143 and 144 respectively. The transition is not merely a renumbering exercise. Section 143 of the BNS introduces substantive changes of direct relevance to trafficking law: the addition of beggary to the definition of exploitation under Explanation 1; the explicit declaration in Explanation 2 that victim consent is immaterial; a graduated sentencing structure across

seven sub-sections that imposes progressively more severe penalties depending on the number of victims, the age of victims, and whether a public servant is involved; and a maximum of natural life imprisonment in cases involving public servant or police complicity, or habitual offending against children. Section 143(1) prescribes seven to ten years' rigorous imprisonment for the basic offence. Section 143(2) escalates this to ten years to life for trafficking of more than one person. Sections 143(3) and (4) impose ten years to life and fourteen years to life respectively for trafficking involving one child and more than one child. Section 143(5) mandates natural life for repeat child trafficking offenders, and Section 143(7) does the same for public servants and police officers found complicit in the offence.

Section 144 of the BNS addresses the exploitation of trafficked persons separately from the act of trafficking itself. Sub-section (1) punishes the sexual exploitation of a trafficked minor with imprisonment of not less than five years extendable to life, while Sub-section (2) prescribes three to seven years for the sexual exploitation of a trafficked adult. This graduated distinction between adult and minor victims reflects the legislature's recognition of children's heightened vulnerability and reinforces the protective framework established under POCSO.

Beyond Sections 143 and 144, Chapter V of the BNS contains several provisions of direct relevance to trafficking of children. Section 95 creates a new offence — absent from the IPC — of hiring or employing a child to commit an offence, punishable with rigorous imprisonment which may extend to three years and a fine. This provision is particularly significant in

the trafficking context because networks frequently use minors as instruments of recruitment or coercion. Section 96, replacing IPC Section 366A, criminalises the procuration of any child — extending the earlier provision's scope beyond minor girls to all children regardless of gender — and prescribes imprisonment up to ten years and a fine. Sections 98 and 99, replacing IPC Sections 372 and 373, criminalise the selling and buying of children for the purpose of prostitution respectively, each carrying a punishment of not less than seven years extendable to fourteen years, with an additional presumption under Section 99 that a brothel keeper who acquires custody of a female under eighteen years of age is presumed to have done so for the purpose of prostitution unless the contrary is proved.

Section 111 of the BNS introduces the offence of organised crime, which explicitly enumerates human trafficking for prostitution or ransom as one of the activities that constitute organised criminal activity when conducted by a syndicate as a continuing unlawful activity for material benefit. The provision carries the death penalty or life imprisonment where the organised crime results in death, and rigorous imprisonment of not less than five years extendable to life in other cases. Crucially, Section 111 also enables courts to order forfeiture of property derived from or used in the commission of organised crime — a tool entirely absent from the IPC framework that directly addresses the financial infrastructure which makes trafficking networks viable.

The constitutional framework that undergirds all of these statutory provisions remains unchanged by the BNS. Article 23 of the Constitution prohibits trafficking in human beings, begar, and other forms of forced

labour. Article 24 prohibits employment of children below fourteen years in hazardous occupations. These provisions impose justiciable obligations on both the state and private actors, and they have generated substantial Supreme Court jurisprudence directing executive action on trafficking. The BNS's criminal provisions operate within this constitutional frame, and the two must be read together.

Despite these improvements, the BNS does not resolve the fundamental fragmentation of India's anti-trafficking legal landscape. The Immoral Traffic (Prevention) Act, 1956 remains in force and continues to govern activities connected with prostitution. The POCSO Act, 2012 and the Juvenile Justice Act, 2015 continue to address child-specific forms of exploitation under separate statutory frameworks. The Bonded Labour System (Abolition) Act, 1976 governs labour-related trafficking under yet another institutional regime. In cases involving trafficking for sexual exploitation of a minor, prosecutors may simultaneously invoke BNS Sections 143, 144, and 98 or 99 alongside POCSO and JJ Act provisions — creating the same jurisdictional complexity that critics identified under the IPC framework. The comprehensive anti-trafficking statute that India still lacks would need to rationalise this multiplicity of applicable provisions and assign clear institutional responsibility across the chain of investigation, prosecution, protection, and rehabilitation.

### 3.2 Constitutional Provisions Relating to Trafficking

The Constitution of India establishes a strong commitment to safeguarding individuals from exploitation and abuse. Within the constitutional framework, the protection of human dignity and personal liberty occupies a central position. Several constitutional provisions are directly relevant to the issue of trafficking, particularly Articles 23 and 24, which explicitly prohibit practices associated with exploitation.

### 3.2.1 Article 23: Prohibition of Trafficking and Forced Labour

Article 23 declares that trafficking in human beings, begar, and other forms of forced labour are prohibited within the territory of India. This provision reflects the recognition that exploitation of human labour and liberty is incompatible with the principles of equality and dignity that underpin the constitutional order. Importantly, the scope of Article 23 extends beyond actions performed by the state and also applies to exploitation carried out by private individuals[11].

The inclusion of trafficking and forced labour within the list of prohibited practices demonstrates the constitutional commitment to eliminating forms of exploitation historically associated with social and economic inequality. The framers of the Constitution were aware that vulnerable populations, particularly those affected by poverty and marginalization, could be subjected to coercive labour practices. By establishing an explicit prohibition, Article 23 seeks to protect individuals from such abuses.

Judicial interpretation has played an important role in defining the practical scope of Article 23. In **People's Union for Democratic Rights v. Union of**

[11] Constitution of India 1950, art 23.

**India**, the Supreme Court examined whether the payment of wages below the statutory minimum could amount to forced labour[12]. The Court concluded that when individuals are compelled to work for inadequate wages due to economic necessity, such circumstances may constitute a form of coercion. This interpretation expanded the meaning of forced labour to include situations where economic vulnerability effectively deprives individuals of meaningful choice.

Another important judicial intervention occurred in **Bandhua Mukti Morcha v. Union of India**, where the Supreme Court considered the plight of bonded labourers employed in quarry operations[13]. The Court recognized bonded labour as a direct violation of Article 23 and emphasized the responsibility of the state to identify and rehabilitate individuals subjected to such exploitation. The decision underscored the principle that constitutional protections must be actively enforced rather than treated as merely symbolic guarantees.

Through these interpretations, the judiciary has broadened the scope of Article 23 to address modern forms of exploitation that may not involve overt physical coercion. The recognition that economic vulnerability can function as a form of compulsion reflects a more realistic understanding of the conditions that enable trafficking and forced labour to occur.

### 3.2.2 Article 24: Protection of Children from Exploitative Labour

[12] People's Union for Democratic Rights v Union of India AIR 1982 SC 1473.
[13] *Bandhua Mukti Morcha v Union of India* AIR 1984 SC 802.

Article 24 complements the prohibition of trafficking by addressing the exploitation of children in hazardous occupations. The provision prohibits the employment of children below the age of fourteen in factories, mines, or other dangerous forms of work. This constitutional safeguard reflects an understanding that children require special protection due to their limited capacity to defend their interests or resist exploitation.

Child trafficking frequently involves the recruitment of minors for labour in hazardous environments or exploitative industries. By restricting the employment of children in such conditions, Article 24 aims to reduce one of the pathways through which trafficking may occur. The constitutional protection also reinforces the broader principle that childhood should be a period devoted to education and development rather than economic exploitation.

Judicial decisions have further emphasized the significance of Article 24 in protecting children from exploitative labour practices. In **M.C. Mehta v. State of Tamil Nadu**, the Supreme Court addressed the issue of child labour in hazardous industries and directed authorities to implement measures designed to eliminate such practices while ensuring educational opportunities for affected children[14]. The judgment highlighted the importance of combining legal prohibition with social welfare initiatives aimed at addressing the root causes of child labour.

### 3.2.3 Article 21 and the Protection of Human Dignity

[14] M.C. Mehta v State of Tamil Nadu (1996) 6 SCC 756.

Although Articles 23 and 24 specifically address exploitation, the broader constitutional guarantee of the **right to life and personal liberty under Article 21** also plays an important role in anti-trafficking jurisprudence. Over time, the Supreme Court has interpreted Article 21 expansively to include the right to live with dignity and freedom from degrading treatment.

Trafficking fundamentally violates the principle of dignity because it reduces individuals to objects of exploitation and denies them control over their lives. By linking anti-trafficking protections with the right to dignity, the constitutional framework strengthens the legal basis for protecting victims and ensuring accountability for perpetrators.

### 3.2.4 Directive Principles of State Policy

The Directive Principles of State Policy also contribute to the constitutional framework addressing trafficking. Articles such as **Article 39(e)** and **Article 39(f)** encourage the state to protect the health and strength of workers, men, women, and children from abuse and to ensure that children develop in conditions of freedom and dignity. Although these principles are not enforceable in courts, they provide important guidance for legislative and policy initiatives aimed at preventing exploitation.

Together, the constitutional provisions addressing trafficking establish a comprehensive normative framework that emphasizes both individual rights and social responsibility. By prohibiting exploitative practices and encouraging policies that protect vulnerable populations, the Constitution lays the foundation for statutory laws designed to combat trafficking and provide assistance to victims.

### 3.3 Immoral Traffic (Prevention) Act, 1956

One of the earliest legislative measures adopted in India to address activities associated with human trafficking is the **Immoral Traffic (Prevention) Act, 1956 (ITPA)**. The law originally emerged as the **Suppression of Immoral Traffic in Women and Girls Act, 1956 (SITA)** and was enacted in response to India's commitment under the **International Convention for the Suppression of Traffic in Persons and of the Exploitation of the Prostitution of Others, 1949**. Subsequent amendments, particularly the changes introduced in 1986, modified the name of the legislation and expanded its provisions in an attempt to strengthen the legal response to sexual exploitation[15].

The enactment of this legislation represented an early recognition by the Indian state that organized prostitution and the trafficking of women and girls were closely interconnected social problems. Rather than targeting prostitution itself as a moral offence, the statute sought to identify and penalize individuals who profit from the exploitation of others. In doing so, the law attempted to disrupt the networks that recruit, transport, and control victims within the commercial sex industry.

Although the Act predates modern international definitions of trafficking, its provisions address several activities that are commonly associated with trafficking for sexual exploitation. By criminalizing the management of brothels, recruitment of individuals for prostitution, and financial

[15] Immoral Traffic (Prevention) Act 1956.

exploitation of victims, the statute seeks to weaken the economic foundations that sustain such practices.

### 3.3.1 Legislative Purpose and Scope

The central aim of the Immoral Traffic (Prevention) Act is to prevent the exploitation of individuals through organized prostitution. The legislation does not declare prostitution itself to be illegal; rather, it focuses on the exploitation that arises when third parties profit from the sexual labour of others. In this sense, the Act attempts to distinguish between voluntary sex work and circumstances where individuals are coerced, deceived, or trafficked into prostitution.

The statute therefore concentrates on criminalizing intermediaries who play an active role in the trafficking process. These intermediaries may include recruiters, brothel managers, transporters, or individuals who financially benefit from prostitution conducted by others. By penalizing these actors, the law aims to dismantle organized structures that facilitate exploitation.

However, the Act also reflects the social attitudes prevalent at the time of its enactment. Much of its framework is oriented toward regulating prostitution-related activities rather than addressing trafficking in a broader sense. As trafficking has increasingly been recognized as a multidimensional phenomenon affecting various sectors of the economy, this narrow focus has generated debate about the continuing adequacy of the legislation.

### 3.3.2 Key Offences Recognized under the Act

The Immoral Traffic (Prevention) Act contains several provisions designed to address different aspects of exploitation connected to prostitution. These provisions collectively attempt to target both the locations and the individuals involved in trafficking networks.

**(a) Maintenance of Brothels**

Section 3 of the Act criminalizes the operation or management of premises used as brothels. Individuals who maintain, manage, or knowingly permit the use of property for prostitution may be subject to imprisonment and financial penalties. This provision reflects the legislative intention to eliminate establishments that function as centres of organized exploitation.

**(b) Financial Dependence on Prostitution**

Section 4 addresses the issue of individuals who live wholly or partially on the income generated through prostitution of another person. The law recognizes that trafficking networks often involve intermediaries who derive financial benefit without directly participating in prostitution. By penalizing those who profit from the earnings of others, the provision aims to weaken the economic incentives that sustain trafficking operations.

**(c) Recruitment and Procurement for Prostitution**

Section 5 criminalizes the recruitment, inducement, or transportation of individuals for the purpose of prostitution. This provision is particularly significant because it directly addresses the recruitment stage of trafficking. Enhanced penalties apply where the victim is a minor, reflecting the law's recognition of the heightened vulnerability of children.

**(d) Detention in Brothels or Exploitative Premises**

Section 6 prohibits the detention of individuals in premises where prostitution takes place. Trafficked persons are often confined through intimidation, physical violence, or threats of retaliation. By criminalizing detention in such circumstances, the Act acknowledges that victims frequently lack the freedom to leave exploitative environments.

**(e) Regulation of Prostitution near Public Places**

Section 7 restricts prostitution in the vicinity of certain public institutions such as schools, temples, and hospitals. This provision reflects concerns related to public order and community welfare, although it has also been criticized for potentially affecting individuals engaged in prostitution rather than focusing solely on traffickers.

### 3.3.3 Rescue and Protective Measures

In addition to creating criminal offences, the Act contains provisions aimed at rescuing individuals from exploitative environments. Authorities are empowered to conduct raids on premises suspected of being used for prostitution and to remove individuals believed to be victims of exploitation. Once rescued, victims may be placed in protective institutions where they receive medical assistance, counselling, and vocational training.

The inclusion of such provisions demonstrates an early attempt to incorporate rehabilitation within the legal response to trafficking. However, the effectiveness of these mechanisms has often depended on the availability of adequate infrastructure and trained personnel. In many instances,

protective homes have faced criticism due to overcrowding, insufficient funding, and lack of long-term rehabilitation strategies.

### 3.3.4 Limitations of the Legislative Framework

Although the Immoral Traffic (Prevention) Act represents an important milestone in India's anti-trafficking efforts, it has also been subject to significant criticism. One of the most frequently identified limitations is the law's narrow focus on prostitution-related exploitation. Contemporary understandings of trafficking recognize that exploitation may occur in various contexts including forced labour, domestic servitude, agricultural work, and informal industries. The Act does not adequately address these broader forms of trafficking.

Another concern relates to the treatment of individuals involved in prostitution. Certain provisions may result in the arrest or harassment of sex workers rather than targeting traffickers and exploiters. Critics argue that such measures may discourage victims from approaching authorities for assistance and may contribute to further marginalization of already vulnerable groups.

Furthermore, enforcement of the Act has often been inconsistent due to institutional constraints such as inadequate training of law enforcement personnel and limited coordination among agencies responsible for combating trafficking. These challenges highlight the need for a more comprehensive legislative framework that addresses trafficking in all its forms.

### 3.3.5 Judicial Engagement with the Act

Indian courts have played an important role in interpreting the provisions of the Immoral Traffic (Prevention) Act and in emphasizing the importance of protecting victims of exploitation. In **Vishal Jeet v. Union of India**, the Supreme Court recognized the widespread nature of trafficking and directed authorities to adopt measures aimed at preventing the exploitation of women and children in prostitution[16].

Similarly, in **Gaurav Jain v. Union of India**, the Court emphasized the importance of rehabilitation programs designed to integrate victims of prostitution into mainstream society[17]. The decision highlighted the need for education, vocational training, and social support to ensure that survivors are able to rebuild their lives after exploitation.

These judicial interventions demonstrate that the effectiveness of anti-trafficking legislation often depends not only on statutory provisions but also on the willingness of courts to interpret the law in a manner that prioritizes victim protection and rehabilitation.

### 3.3.6 Critical Analysis of the Immoral Trafficking (Prevention) Act, 1956

The Immoral Trafficking (Prevention) Act, 1956 (ITPA) represents one of the earliest legislative attempts in India to address the problem of trafficking, particularly in the context of prostitution. Enacted in pursuance of international obligations, the Act seeks to prevent immoral trafficking and penalize activities associated with commercial sexual exploitation. However,

[16] Vishal Jeet v Union of India (1990) 3 SCC 318.
[17] Gaurav Jain v Union of India (1997) 8 SCC 114

despite its historical significance, the effectiveness of the Act in addressing contemporary forms of trafficking remains a subject of considerable debate.

One of the primary limitations of the ITPA lies in its narrow conceptualization of trafficking. The Act predominantly focuses on prostitution-related offences such as running brothels, procuring persons for prostitution, and living on the earnings of prostitution. While these provisions are relevant, they fail to capture the broader dimensions of trafficking, which include forced labour, domestic servitude, organ trade, and other forms of exploitation now recognized under modern legal frameworks. This limited scope reduces the Act's utility in addressing the evolving and multifaceted nature of trafficking.

Another critical issue is the tendency of the Act to conflate trafficking with prostitution. Although trafficking often results in sexual exploitation, the two concepts are not identical. By centering its provisions around prostitution, the ITPA inadvertently shifts focus away from the processes of recruitment, transportation, and coercion that constitute trafficking. This has led to a situation where enforcement efforts are disproportionately directed towards regulating sex work rather than dismantling trafficking networks.[18]

A significant concern arising from this framework is the potential for victim criminalization. Certain provisions of the Act, particularly those relating to soliciting in public places, have historically been used against the very individuals the law seeks to protect. Women engaged in prostitution, many of whom are victims of trafficking, are often subjected to arrest and

[18] Prabha Kotiswaran, Dangerous Sex, Invisible Labour: Sex Work and the Law in India (Princeton University Press, Princeton, 2011)

detention under these provisions. This approach undermines the principle of victim protection and may further marginalize individuals who are already in vulnerable circumstances.

The Act also places considerable emphasis on rescue operations, which, although well-intentioned, raise questions regarding their implementation and impact. In many instances, rescue is followed by institutionalization in protective homes without adequate attention to long-term rehabilitation or reintegration into society. Such measures may result in secondary victimization, as individuals are deprived of autonomy and subjected to restrictive environments. The absence of a comprehensive rehabilitation framework further exacerbates this issue, limiting the effectiveness of rescue as a long-term solution.

Another limitation of the ITPA is the lack of clarity regarding coordination with other laws dealing with trafficking. With the introduction of Section 370 of the Indian Penal Code, which provides a more comprehensive definition of trafficking, there exists a significant overlap between the two legal frameworks. However, there is little guidance on how these laws are to be harmonized in practice. This creates confusion among enforcement agencies and may lead to inconsistent application of legal provisions.

Enforcement challenges also contribute to the limited effectiveness of the Act. The success of the ITPA depends heavily on proactive policing, effective investigation, and coordination among various authorities. However, issues such as lack of training, inadequate resources, and social stigma often hinder the proper implementation of the law. In many cases,

trafficking networks continue to operate with relative impunity due to weaknesses in enforcement mechanisms.

Furthermore, the Act does not adequately address the socio-economic factors that contribute to trafficking. Poverty, lack of education, unemployment, and gender inequality continue to push individuals into vulnerable situations. While the ITPA seeks to penalize exploitative practices, it does not provide sufficient measures to address these underlying causes. As a result, the law operates more as a reactive mechanism rather than a preventive one.

In recent years, there have been attempts to reform the ITPA to align it with contemporary understandings of trafficking and victim rights. However, these efforts have faced challenges, particularly in balancing the need for stricter enforcement with the protection of individual freedoms. The debate surrounding the criminalization of clients and the decriminalization of sex workers reflects the complexities involved in reforming the law.

In conclusion, while the Immoral Trafficking (Prevention) Act, 1956 has played an important role in shaping India's legal response to trafficking, its limitations are evident in the context of modern trafficking dynamics. The narrow focus on prostitution, potential for victim criminalization, lack of coordination with other laws, and inadequate emphasis on rehabilitation highlight the need for a more comprehensive and integrated legal framework. Strengthening the Act, or harmonizing it effectively with broader trafficking laws, is essential to ensure a more effective response to the trafficking of women and children.

### 3.4 Provisions under Indian Penal Code and Bharatiya Nyaya Sanhita on Trafficking

The legal regulation of trafficking in India has undergone significant transformation, particularly with the transition from the Indian Penal Code (IPC) to the Bharatiya Nyaya Sanhita, 2023 (BNS). While the IPC laid the foundational framework for criminalising trafficking, the BNS introduces a more structured and comprehensive approach reflecting contemporary forms of exploitation.

Recognizing these shortcomings, the Indian legislature introduced significant reforms through the **Criminal Law (Amendment) Act, 2013**. These reforms replaced the earlier limited definition of trafficking and introduced a more detailed framework under **Sections 370 and 370A of the IPC**. The amended provisions reflect an evolving legal understanding that trafficking involves a chain of activities rather than a single criminal act. They also align Indian criminal law more closely with international standards concerning trafficking in persons[19].

#### 3.4.1 Trafficking under the Indian Penal Code

Section 370 of the IPC establishes a comprehensive legal definition of trafficking in persons. The provision recognizes trafficking as a process that may include recruitment, transportation, transfer, harbouring, or receipt of

[19] Criminal Law (Amendment) Act 2013.

individuals for the purpose of exploitation. By addressing each stage of this process, the law acknowledges that trafficking networks typically involve multiple actors performing different roles within an organized system of exploitation.

The provision further identifies several methods through which traffickers exercise control over victims. These include the use of threats, physical force, deception, abuse of authority, and exploitation of a person's vulnerability. The inclusion of these methods reflects an understanding that trafficking frequently relies on manipulation and coercion rather than overt physical violence. Victims may initially agree to travel or work under false promises but later find themselves trapped in exploitative circumstances once traffickers gain control over them.

A key feature of Section 370 is its emphasis on **exploitation as the central objective of trafficking**. The law recognizes a range of exploitative outcomes, including forced labour, slavery, servitude, and sexual exploitation. This broad definition acknowledges that trafficking is not confined to the commercial sex industry but may occur in numerous sectors such as domestic labour, agriculture, construction, and informal industries.

The provision also clarifies that **the apparent consent of the victim does not constitute a valid defence** when the trafficker has used coercion, deception, or abuse of power. This principle reflects the recognition that many victims agree to travel or work under circumstances where their choices are shaped by economic desperation or misinformation. In such situations, the law treats consent as legally irrelevant because the decision was obtained through manipulation or abuse.

### 3.4.2 Enhanced Punishments for Aggravated Offences

Section 370 establishes different levels of punishment depending on the seriousness of the offence. Trafficking involving multiple victims, organized criminal groups, or repeated offences attracts more severe penalties. The law also provides enhanced punishment where the offence involves public officials who misuse their authority to facilitate trafficking.

Particular emphasis is placed on the trafficking of children. The law treats the trafficking of minors as an aggravated offence because children are inherently more vulnerable and lack the capacity to provide informed consent. In such cases, the prosecution is not required to demonstrate the use of coercive methods because the mere act of recruiting or transporting a child for exploitation constitutes trafficking.

This approach reflects a broader commitment within Indian criminal law to prioritize the protection of children from exploitation and abuse.

### 3.4.3 Section 370A: Punishment for Exploiting Trafficked Persons

In addition to penalizing the trafficking process itself, the legislature introduced **Section 370A** to address the exploitation of trafficked persons. This provision targets individuals who knowingly use the services of trafficked persons for sexual exploitation or other exploitative purposes.

The inclusion of this provision represents an important shift in legislative strategy. Earlier legal approaches primarily focused on punishing traffickers while overlooking the role of individuals who create demand for trafficked

labour or services. Section 370A recognizes that trafficking persists because exploitative markets continue to exist.

By criminalizing the use of trafficked persons, the law attempts to address the **demand-side dynamics** of trafficking. This approach reflects a growing recognition within international legal frameworks that combating trafficking requires not only the prosecution of traffickers but also the regulation of markets that sustain exploitation.

### 3.4.4 Sale and Purchase of Minors under Sections 372 and 373

In addition to the provisions introduced in 2013, the IPC contains earlier sections designed to protect minors from exploitation. **Section 372** criminalizes the sale or disposal of a minor with the intention that the child will be used for prostitution or other immoral purposes. Similarly, **Section 373** penalizes individuals who purchase or obtain possession of a minor for such purposes.

These provisions recognize that trafficking of children often involves transactions in which minors are treated as commodities. The law therefore imposes liability not only on those who sell or transfer children but also on those who purchase them for exploitative purposes.

Although these sections were originally enacted in the context of prostitution-related offences, they have been interpreted broadly to address various forms of exploitation involving minors. Their continued relevance demonstrates the long-standing recognition within Indian criminal law that children require special protection from commercial exploitation.

### 3.4.5 Assessment of the Legislative Reforms

The reforms introduced through the Criminal Law (Amendment) Act, 2013 represent an important development in India's legal response to trafficking. By introducing a comprehensive definition of trafficking and addressing both the supply and demand sides of exploitation, the law provides a stronger foundation for prosecuting trafficking offences.

Nevertheless, the effectiveness of these provisions depends largely on their implementation. Investigations involving trafficking are often complex because they require coordination among multiple law enforcement agencies and may involve victims who have been transported across state or national borders. In addition, victims may be reluctant to cooperate with authorities due to fear, stigma, or lack of protection.

These challenges indicate that legal reform alone cannot eliminate trafficking. Effective enforcement must be supported by institutional capacity, victim protection mechanisms, and coordinated efforts among government agencies and civil society organizations. Only through such comprehensive measures can the objectives of the criminal law framework be fully realized.

### 3.4.6 Trafficking under the Bharatiya Nyaya Sanhita, 2023

The introduction of the Bharatiya Nyaya Sanhita, 2023, which became operational on 1 July 2024, represents a major shift in India's criminal law framework. In the context of trafficking, this shift goes beyond a simple renumbering of provisions previously contained in the Indian Penal Code.

Instead, it reflects an attempt to reorganize and strengthen the legal response based on practical enforcement challenges observed over time.

Under the new framework, Section 143 serves as the primary provision dealing with trafficking in persons[20], while Section 144 addresses the exploitation of trafficked individuals as a distinct offence[21]. These provisions now form the central basis for prosecution in cases registered after the commencement of the BNS.

Section 143 adopts a structured approach by incorporating three essential elements—conduct, method, and purpose. It covers acts such as recruitment, transportation, transfer, harbouring, and receipt of persons. The provision also specifies various coercive or deceptive means, including threats, fraud, abuse of authority, and inducement. The ultimate requirement remains exploitation.

A notable development under the BNS is the expanded understanding of exploitation. In addition to previously recognised forms such as sexual exploitation, slavery, and forced labour, the law now explicitly includes beggary. This addition is significant in the Indian context, where forced begging has long been linked to organized trafficking networks but lacked clear statutory recognition.

### 3.4.7 Consent and Its Legal Irrelevance

The BNS explicitly clarifies that consent does not negate the offence of trafficking when it has been obtained through improper means. This

[20] Bharatiya Nyaya Sanhita, 2023, s 143.
[21] Bharatiya Nyaya Sanhita, 2023, s 144.

clarification strengthens the legal position that apparent willingness on the part of the victim does not legitimise exploitative arrangements.

In earlier practice under the IPC, questions of consent often became points of contention during trial. Although courts generally recognised that consent obtained through deception or coercion was invalid, the absence of a clear statutory provision sometimes complicated proceedings.[22] The BNS resolves this ambiguity by placing the focus entirely on the conduct of the trafficker rather than the perceived choices of the victim.

This clarification is particularly important in cases of labour trafficking, where victims may initially agree to employment offers that later result in exploitative conditions. By removing consent as a defence in such circumstances, the law better reflects the realities of coercion and economic vulnerability.

### 3.4.8 Sentencing Structure under Section 143

The BNS introduces a more detailed sentencing framework compared to the earlier IPC provisions. Instead of broadly categorising offences, Section 143 provides multiple levels of punishment based on the seriousness of the offence.

Basic trafficking offences attract a minimum term of imprisonment, while more severe penalties apply in cases involving multiple victims, minors, repeated offences, or abuse of official position. Particularly stringent

[22] Bharatiya Nyaya Sanhita, 2023, s 143 Explanation 2.

punishment is prescribed where public servants are involved, reflecting the need to address institutional complicity.[23]

This graduated structure enhances proportionality in sentencing and enables courts to differentiate between varying degrees of criminal conduct more effectively.

### 3.4.9 Exploitation under Section 144

Section 144 addresses the conduct of individuals who knowingly exploit trafficked persons. This provision distinguishes between offences involving minors and those involving adults, prescribing stricter punishment in cases involving children.

The rationale for this distinction lies in the heightened vulnerability of minors and the severe long-term consequences of exploitation at a young age. The provision also complements other child protection laws such as the POCSO Act, ensuring a more comprehensive legal response in cases involving child victims.

### 3.4.10 Child-Specific Provisions under the BNS

The BNS also introduces additional provisions aimed at protecting children from exploitation. These include offences relating to the use of children in criminal activities, procuration, and the sale or purchase of minors for exploitative purposes.

An important development is the extension of protection to all children, irrespective of gender, thereby addressing earlier limitations in the legal

[23] Law Commission of India, *Report No 262 on Death Penalty* (2015).

framework. These provisions collectively strengthen the protective architecture for children within the criminal law system.

### 3.4.11 Organised Crime and Trafficking

A significant innovation under the BNS is the recognition of trafficking as part of organised criminal activity. Section 111 enables authorities to prosecute trafficking networks as organised crime, particularly where such activities are carried out systematically for financial gain.[24]

This provision allows for stronger investigative measures and also introduces the possibility of targeting the financial assets associated with trafficking operations. By focusing on networks rather than isolated individuals, the law attempts to address the structural nature of trafficking.

### 3.4.12 Transitional Application of IPC and BNS

The transition from the IPC to the BNS creates a dual legal scenario. Offences committed prior to 1 July 2024 continue to be governed by the IPC, while offences committed thereafter fall under the BNS.

As a result, courts are currently required to apply both frameworks depending on the timing of the offence. While earlier judicial interpretations under the IPC remain relevant, they must now be adapted to the revised statutory provisions under the BNS.

## 3.5 Protection of Children from Sexual Offences Act, 2012 (POCSO)

[24] Siddharth Kara, *Sex Trafficking: Inside the Business of Modern Slavery* (Columbia University Press 2009).

The **Protection of Children from Sexual Offences Act, 2012 (POCSO)** constitutes a significant component of India's legal architecture designed to safeguard children from sexual exploitation and abuse. Although the statute was enacted primarily to address sexual offences against minors, its provisions frequently intersect with cases involving the trafficking of children. In many trafficking investigations, particularly those involving sexual exploitation, the offences defined under POCSO operate alongside other criminal laws to ensure a more comprehensive prosecution of perpetrators.

The enactment of the legislation reflected growing concern that existing criminal provisions were insufficient to address the specific vulnerabilities faced by children. Earlier legal mechanisms largely relied on general provisions of the Indian Penal Code that did not adequately differentiate between adult and child victims. As a result, the justice system often lacked procedural safeguards necessary to protect minors during the investigative and judicial process. The POCSO Act sought to remedy these deficiencies by introducing a specialized statutory framework focused exclusively on offences involving children[25].

A defining characteristic of the Act is its detailed categorization of sexual offences against minors. The legislation distinguishes between penetrative sexual assault, aggravated penetrative sexual assault, non-penetrative sexual assault, and sexual harassment. This classification allows the law to capture a wide range of exploitative conduct that trafficked children may experience. By clearly defining these offences, the statute ensures that acts of

[25] Protection of Children from Sexual Offences Act 2012.

exploitation cannot easily escape legal scrutiny due to ambiguity in existing legal provisions.

Another notable feature of the Act is its recognition that children may lack the capacity to meaningfully consent to sexual activity. The legal framework therefore treats consent differently when minors are involved. Instead of requiring proof that a child resisted or refused the act, the law presumes exploitation where sexual conduct with a minor is established. This approach acknowledges the power imbalance between adults and children and seeks to reduce the burden placed on child victims during criminal proceedings.

The Act also incorporates procedural mechanisms designed to make the justice process less intimidating for minors. Investigative authorities are required to record statements in environments that are comfortable for the child, and questioning must avoid aggressive or coercive methods. Special courts are designated to hear cases under the Act, and proceedings are conducted in a manner intended to preserve the dignity and privacy of victims.

Despite the progressive design of the legislation, practical implementation has encountered several obstacles. Inadequate training of investigators, delays in judicial proceedings, and insufficient support services for victims sometimes undermine the protective intentions of the statute. Additionally, the availability of specialized courts and child-friendly infrastructure remains uneven across different regions of the country. These challenges illustrate that legal provisions alone cannot guarantee effective protection unless supported by adequate institutional capacity and coordinated implementation.

Nevertheless, the POCSO Act remains a crucial tool in addressing trafficking cases involving minors, as it ensures that sexual exploitation of children is prosecuted within a framework that prioritizes victim protection and sensitivity.

### 3.6 Juvenile Justice (Care and Protection of Children) Act, 2015

The **Juvenile Justice (Care and Protection of Children) Act, 2015** provides a welfare-oriented framework for protecting children who are vulnerable to abuse, neglect, or exploitation. Within the context of trafficking, this legislation plays an essential role because trafficked children are typically classified as **children in need of care and protection** under its provisions. This classification enables authorities to provide immediate assistance and ensures that such children are treated as victims rather than offenders.

The philosophy underlying the Juvenile Justice framework emphasizes rehabilitation rather than punishment. Recognizing that children who experience trafficking often suffer from severe psychological and social harm, the Act seeks to create institutional mechanisms capable of addressing their long-term needs. The legislation therefore combines legal protection with social welfare interventions designed to support recovery and reintegration.

A central institution established under the Act is the **Child Welfare Committee (CWC)**. These committees function as quasi-judicial bodies responsible for assessing the circumstances of children who have been

rescued from exploitative environments. After examining the situation, the committee determines the most appropriate course of action for the child's care and protection. Possible outcomes may include placement in a child care institution, foster care arrangements, or supervised reintegration with family members.

The Act also places considerable emphasis on rehabilitation measures aimed at enabling trafficked children to rebuild their lives. These measures may include access to education, counselling services, and vocational training programs. Such interventions are intended to address the long-term consequences of exploitation and to reduce the likelihood that children will be re-trafficked due to economic vulnerability.

Despite the existence of this protective framework, several challenges affect the effectiveness of the Juvenile Justice system. Child care institutions in some regions face issues such as overcrowding, inadequate funding, and insufficiently trained staff. Additionally, coordination between law enforcement agencies and child protection authorities is sometimes weak, which can delay the provision of assistance to rescued children.

Nevertheless, the Juvenile Justice Act remains a vital component of India's response to child trafficking because it establishes a structured mechanism through which vulnerable children can receive protection, rehabilitation, and social support.

### 3.7 Bonded Labour System (Abolition) Act, 1976

The **Bonded Labour System (Abolition) Act, 1976** addresses another dimension of trafficking that arises within labour markets. Bonded labour refers to a system in which individuals are compelled to work to repay debts or obligations, often under conditions that severely restrict their freedom. Such arrangements frequently arise in environments marked by poverty, social inequality, and limited access to economic opportunities.

The Act formally abolishes the bonded labour system and declares all agreements creating such obligations to be legally invalid. It also extinguishes any debts associated with bonded labour arrangements, thereby removing the financial mechanisms that perpetuate exploitation. Through these measures, the legislation seeks to eliminate a practice historically used to control vulnerable workers.

In addition to declaring bonded labour unlawful, the statute imposes penalties on individuals who compel others to work under such conditions. Employers or intermediaries who maintain systems of debt-based labour exploitation may face criminal liability. The law also empowers authorities to identify bonded labourers and implement rehabilitation measures intended to support their economic independence.

Despite these legal prohibitions, bonded labour has not been entirely eliminated in practice. In certain sectors of the informal economy, exploitative labour relationships continue to occur, particularly among migrant workers and marginalized communities. Factors such as illiteracy, lack of awareness of legal rights, and fear of retaliation may prevent victims from seeking assistance.

These realities highlight the importance of strengthening enforcement mechanisms and improving awareness regarding labour rights. While the Bonded Labour System (Abolition) Act provides an important legal basis for combating labour-related exploitation, its effectiveness depends on sustained efforts by authorities to identify victims and dismantle exploitative labour arrangements.

### 3.8 International Legal Framework

Efforts to combat trafficking in India are also influenced by international legal norms that address trafficking as a global human rights concern. Because trafficking frequently involves cross-border networks and transnational criminal activity, international cooperation plays a crucial role in addressing the problem effectively. Several international conventions and protocols establish obligations for states to prevent trafficking, prosecute offenders, and provide assistance to victims.

One of the most influential international instruments is the **Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children**, commonly referred to as the **Palermo Protocol**, adopted in 2000[26]. This protocol introduced a widely accepted definition of trafficking that identifies the various stages and methods through which trafficking occurs. It also encourages states to adopt comprehensive strategies encompassing prevention, criminalization, and victim protection.

[26] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

Another significant instrument is the **Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)**[27]. The Convention recognizes that trafficking in women is closely linked to gender inequality and requires states to adopt measures aimed at eliminating such practices. By framing trafficking as a form of discrimination and violence against women, CEDAW highlights the broader structural factors that contribute to women's vulnerability.

The **United Nations Convention on the Rights of the Child (UNCRC)** also addresses trafficking from the perspective of child protection[28]. The Convention obliges states to take legislative and administrative measures to prevent the exploitation of children in economic activities, sexual abuse, and other harmful practices.

International labour standards developed by the **International Labour Organization (ILO)** further reinforce the global commitment to eliminating forced labour and child labour. These instruments emphasize that exploitative labour practices violate fundamental human rights and must be addressed through coordinated international action.

India's participation in these international frameworks has influenced the development of domestic legislation aimed at combating trafficking. Many of the reforms introduced in recent decades reflect an attempt to align national law with global standards concerning victim protection and criminal accountability.

[27] Convention on the Elimination of All Forms of Discrimination Against Women (1979).
[28] United Nations Convention on the Rights of the Child (1989).

However, the translation of international commitments into effective domestic enforcement remains a continuing challenge. Legislative reforms must be accompanied by institutional capacity, inter-agency coordination, and sustained political commitment if the objectives of these international instruments are to be realized in practice.

### 3.9 Critical Appraisal of the Trafficking of Persons (Prevention, Protection and Rehabilitation) Bill, 2018

The Trafficking of Persons (Prevention, Protection and Rehabilitation) Bill, 2018 was introduced with the objective of creating a comprehensive legal framework to address the multifaceted issue of human trafficking in India. The Bill aimed to integrate the aspects of prevention, protection, rescue, rehabilitation, and prosecution into a single legislation.[29] While the intent behind the Bill reflects a progressive approach, a closer examination reveals several conceptual and practical shortcomings that limit its effectiveness.

One of the major concerns associated with the Bill is its failure to harmonize with existing legal frameworks. India already has multiple laws dealing with trafficking-related offences, including provisions under the Indian Penal Code, the Immoral Traffic (Prevention) Act, and the Juvenile Justice Act. Instead of consolidating these laws into a coherent structure, the Bill adds another layer to an already fragmented legal system. This multiplicity of laws creates confusion regarding jurisdiction, applicable provisions, and

[29] Trafficking in Persons (Prevention, Protection and Rehabilitation) Bill 2018

enforcement mechanisms, thereby complicating the legal response to trafficking.

Another critical issue lies in the creation of multiple institutional bodies under the Bill. It proposes the establishment of Anti-Trafficking Units, District and State Anti-Trafficking Committees, and a National Anti-Trafficking Bureau. While institutional mechanisms are essential for effective implementation, the proliferation of authorities without clear delineation of roles may lead to administrative overlap and lack of accountability. The presence of multiple bodies performing similar functions increases the risk of bureaucratic inefficiency and delays in decision-making, ultimately affecting the delivery of justice and rehabilitation services to victims.

The Bill has also been criticized for its approach towards classification of offences. It introduces the concept of "aggravated forms of trafficking" with enhanced punishments. However, the criteria for such classification lack clarity and consistency. Certain offences are categorized as aggravated without a clear rationale, while other equally serious forms of exploitation remain outside this category. This inconsistency may lead to arbitrary application of the law and undermine the principle of proportionality in sentencing.

A significant point of concern is the Bill's emphasis on criminalization and punitive measures. While stringent punishment is necessary to deter traffickers, an over-reliance on criminal law may overshadow the need for a victim-centric approach. The Bill largely focuses on law enforcement mechanisms, with comparatively limited attention to the rights, autonomy,

and long-term rehabilitation of victims. This approach risks perpetuating a system where victims are treated as passive recipients of state intervention rather than active participants in their own rehabilitation.

The rehabilitation framework proposed under the Bill also raises important issues. It envisages the establishment of Protection Homes and Rehabilitation Homes for victims of trafficking. However, the Bill does not clearly define the standards, functioning, or monitoring mechanisms for these institutions. In the absence of clear guidelines, there is a risk that such institutions may replicate the shortcomings observed in existing shelter homes, including inadequate facilities, lack of transparency, and potential for abuse. Moreover, the institutionalization of victims without their informed consent may infringe upon their personal liberty and dignity.

Another area of concern is the potential impact of the Bill on existing social and welfare mechanisms. The Bill introduces new authorities and procedures without adequately clarifying their relationship with existing bodies such as Child Welfare Committees and State Child Protection Units.[30] This lack of coordination may lead to duplication of efforts and confusion in the implementation process. Victims may be subjected to multiple procedures and authorities, which could delay rehabilitation and increase their vulnerability.

The Bill has also been criticized for its broad and vague provisions. Certain offences are defined in terms that are open to wide interpretation, which may result in misuse or arbitrary enforcement. For instance, provisions relating to

[30] Juvenile Justice (Care and Protection of Children) Act 2015, s 27

the closure of premises or confiscation of property based on anticipated use for trafficking may have unintended consequences, particularly in cases where there is insufficient evidence. Such provisions raise concerns regarding due process and protection against arbitrary state action.

Furthermore, the Bill does not sufficiently address the socio-economic dimensions of trafficking. Factors such as poverty, lack of employment opportunities, gender inequality, and migration patterns play a crucial role in making individuals vulnerable to trafficking. However, the Bill primarily adopts a criminal justice approach without integrating comprehensive preventive measures aimed at addressing these root causes.[31] This limits its effectiveness as a long-term solution to the problem.

Despite these criticisms, the Bill represents an important step towards recognizing trafficking as a complex and multi-dimensional issue requiring a comprehensive response. Its emphasis on creating specialized institutions and addressing different stages of trafficking reflects an acknowledgment of the limitations of existing laws. However, for such a framework to be effective, it must be accompanied by clarity, coordination, and a strong focus on victim rights.

In conclusion, while the Trafficking of Persons Bill, 2018 attempts to provide a holistic legal framework, its shortcomings in terms of legal fragmentation, institutional overlap, lack of clarity, and insufficient victim-centric measures limit its potential impact. A more integrated approach that harmonizes existing laws, strengthens implementation mechanisms, and

[31] UN Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000), Art 9

prioritizes the rights and rehabilitation of victims is essential for effectively combating trafficking of women and children in India.

# CHAPTER 4

# JUDICIAL RESPONSE: CASE LAW ANALYSIS AND JUDICIAL TRENDS

***"Dignity is the core of the constitutional vision. No law, no policy, no institutional arrangement can be valid if it strips a person of the dignity which the Constitution guarantees."***

… Justice D.Y. Chandrachud

## 4.1 Introduction

Courts do not make anti-trafficking policy. They do not allocate budgets to rehabilitation programmes, train police officers in victim identification, or negotiate bilateral agreements with neighbouring countries to repatriate trafficked persons. What they do — what only they can do — is impose interpretive discipline on statutory provisions, extend constitutional protection to individuals whom other institutions have failed, and hold the executive accountable for obligations it has undertaken but not discharged. In a country where anti-trafficking legislation is fragmented and enforcement is uneven, the significance of judicial intervention depends on understanding precisely what courts can and cannot accomplish, and on measuring their actual contribution against both standards.

India's judiciary has engaged with trafficking through two distinct channels. The first is the public interest litigation mechanism, which has allowed civil society organisations, social activists, and concerned individuals to bring structural problems before the Supreme Court and High Courts without

requiring individual victims to initiate proceedings. The second channel is ordinary appellate and revisional jurisdiction, through which High Courts review decisions of trial courts in individual trafficking cases.

The judicial landscape now faces a transitional challenge of practical significance. All offences committed on or after July 1, 2024 are prosecuted under the BNS rather than the IPC. Cases registered before that date continue under the IPC framework. Courts are therefore simultaneously operating under two statutory regimes. The sentencing provisions differ: BNS Section 143's seven graduated sub-sections provide more precise guidance than IPC Section 370's provisions, and Section 143(7)'s natural life imprisonment for public servant involvement is a categorically new sentencing outcome with no IPC equivalent. The organised crime provision in BNS Section 111 is available for post-July 2024 cases but not for earlier prosecutions. Courts managing cases under both regimes will need to develop consistent interpretive principles while acknowledging these structural differences.

One conclusion emerges clearly from the analysis of the existing case law and deserves stating at the outset: judicial intervention has been indispensable but insufficient. Indispensable, because courts have repeatedly identified systemic failures that legislatures and executive agencies were content to ignore. Insufficient, because the enforcement of judicial directions — the translation of court orders into changed institutional behaviour — has been persistently weak. The BNS's Section 111 organised crime framework and the enhanced penalties of Section 143 may give prosecutors and courts new instruments to address the systemic dimensions of trafficking that PIL

jurisprudence has long identified but that criminal prosecution has been unable to dismantle. Whether those instruments are deployed effectively is a question of institutional practice that no statute can answer on its own.

### 4.2 Public Interest Litigation and Judicial Intervention in Trafficking Cases

One of the distinctive features of India's judicial system is the development of **Public Interest Litigation (PIL)** as a mechanism for addressing issues affecting vulnerable sections of society. PIL allows individuals or organizations to approach courts on behalf of persons who may not have the resources or capacity to pursue legal remedies themselves. This procedural innovation has played a particularly important role in bringing the issue of human trafficking before the judiciary.

Victims of trafficking often belong to economically marginalized communities and may lack access to legal assistance. In many cases, they are unaware of their rights or may fear retaliation from traffickers if they attempt to seek justice. The availability of PIL therefore enables civil society organizations and social activists to raise concerns about trafficking and request judicial intervention on behalf of affected individuals.

Through PIL proceedings, courts have been able to examine broader systemic issues related to trafficking rather than limiting their focus to individual criminal cases. Such proceedings have addressed matters including rescue operations, rehabilitation policies, protection of minors, and

the need for improved coordination among government agencies responsible for combating trafficking.

A significant example of judicial engagement through PIL can be seen in **Vishal Jeet v Union of India**, where the Supreme Court examined the widespread trafficking of women and children for the purpose of prostitution[32]. Recognizing the seriousness of the issue, the Court directed government authorities to establish committees tasked with studying the problem and recommending measures to prevent exploitation and rehabilitate victims. The decision reflected an acknowledgment that trafficking requires coordinated policy responses rather than isolated enforcement actions.

Another important case illustrating judicial concern for victims of trafficking is **Gaurav Jain v Union of India**, in which the Supreme Court addressed the conditions faced by children born to women engaged in prostitution[33]. The Court emphasized that these children should not be stigmatized or denied access to education and social opportunities due to the circumstances of their birth. By focusing on the long-term welfare of affected children, the judgment broadened the scope of judicial attention to include issues of rehabilitation and social integration.

Judicial engagement through PIL has also involved monitoring the implementation of government programs aimed at addressing trafficking. Courts have occasionally required authorities to submit reports detailing the steps taken to combat trafficking and provide assistance to victims. This

[32] Vishal Jeet v Union of India (1990) 3 SCC 318.
[33] Gaurav Jain v Union of India (1997) 8 SCC 114.

form of judicial oversight reflects an effort to ensure that legislative and policy commitments are translated into practical action.

However, the increasing role of courts in addressing trafficking has also generated debate among legal scholars regarding the appropriate limits of judicial intervention. While judicial activism can help highlight neglected social problems, long-term solutions ultimately depend on legislative reform, administrative capacity, and effective implementation of policies by executive authorities.

Despite these debates, the contribution of PIL to anti-trafficking jurisprudence remains significant. By providing a platform through which systemic issues can be brought before the courts, PIL has helped shape the legal discourse surrounding trafficking and has encouraged greater institutional accountability in addressing this serious human rights concern.

The scope of Public Interest Litigation (PIL) in addressing trafficking is not confined to constitutional courts alone but also extends to trial courts adjudicating individual cases. At this level, the judiciary has demonstrated a practical awareness of the challenges inherent in anti-trafficking enforcement. An illustrative example is *State v Shymal Lal*, which involved the trafficking of a minor girl who had been abducted and moved through a network of individuals before ultimately being forced into sexual exploitation in a brothel. The prosecution invoked Sections 372 and 373 of the Indian Penal Code, which criminalize the sale and purchase of minors for purposes of prostitution. A notable aspect of the case was the court's pragmatic handling of evidentiary limitations. Despite the absence of independent public witnesses during the rescue operation and limited

documentary proof connecting the accused to the premises, the court acknowledged that the covert and sensitive nature of trafficking offences often makes strict evidentiary standards difficult to meet, and accordingly accepted the prosecution's explanation.[34]

The importance of *State v Shymal Lal* lies not only in its outcome but in the broader systemic issues it brings to light. The procedural shortcomings identified in the case—such as the lack of independent witnesses, insufficient documentation of the rescue process, and absence of effective coordination between agencies—are not isolated defects but reflect recurring weaknesses in trafficking investigations across jurisdictions. Although courts may adopt a flexible approach in evaluating evidence to address such deficiencies, this judicial accommodation cannot replace the need for structural improvements in investigation, victim assistance, and inter-agency collaboration. The case further highlights a limitation in prosecutorial strategy. While the facts indicated the involvement of multiple actors operating within a coordinated chain, the prosecution primarily focused on establishing individual liability rather than exposing the organised nature of the trafficking network. As a result, the larger criminal enterprise remained inadequately addressed—an issue that more recent provisions dealing with organised crime, such as Section 111 of the Bharatiya Nyaya Sanhita, seek to overcome.

Public Interest Litigation has also played a significant role in expanding judicial protection to children, particularly in contexts where their vulnerability to trafficking is closely linked with exploitative labour

[34] State v Shymal Lal (Trial Court). The case proceeded under Indian Penal Code 1860, ss 372 and 373.

conditions. In *M.C. Mehta v State of Tamil Nadu*, the Supreme Court examined the widespread employment of children in hazardous industries, including match and fireworks factories, and held that such practices violated the fundamental rights guaranteed under Articles 21 and 24 of the Constitution. The Court went beyond issuing a prohibitory directive and instead adopted a remedial approach. It mandated the development of rehabilitation schemes for affected children, imposed financial liability on employers engaging in prohibited child labour, and directed the establishment of welfare funds to support the education and reintegration of rescued children. By requiring affirmative measures rather than merely declaring the practice unlawful, the Court emphasized that the State's constitutional responsibility extends to ensuring the recovery and long-term welfare of vulnerable children.

The relevance of *M.C. Mehta v State of Tamil Nadu* to anti-trafficking jurisprudence lies in its recognition that child labour and trafficking often arise from the same underlying socio-economic conditions. Children working in hazardous environments due to poverty, debt, or coercion frequently form part of trafficking processes, even when they are not formally categorized as trafficking victims. By treating the State's failure to prevent such exploitation as a constitutional violation, the Court established an important normative standard that has influenced subsequent judicial approaches to trafficking. At the same time, the case reflects a continuing challenge within the legal system—the gap between judicial directives and their implementation in practice. Despite the Court's comprehensive framework, enforcement of child labour laws has remained inconsistent,

demonstrating that judicial intervention, while crucial, must be supported by sustained administrative action to achieve meaningful change.[35]

However, the increasing role of courts in addressing trafficking has also generated debate among legal scholars regarding the appropriate limits of judicial intervention. While judicial activism can help highlight neglected social problems, long-term solutions ultimately depend on legislative reform, administrative capacity, and effective implementation of policies by executive authorities.

Despite these debates, the contribution of PIL to anti-trafficking jurisprudence remains significant. By providing a platform through which systemic issues can be brought before the courts, PIL has helped shape the legal discourse surrounding trafficking and has encouraged greater institutional accountability in addressing this serious human rights concern.

### 4.3 Landmark Supreme Court Judgments on Trafficking

Judicial decisions of the Supreme Court of India have played a significant role in shaping the country's response to human trafficking. Although statutory provisions provide the formal legal framework, the interpretation and enforcement of these laws depend largely on judicial engagement. Through a series of landmark rulings, the Supreme Court has clarified the scope of anti-trafficking legislation, emphasized the protection of vulnerable

[35] M.C. Mehta v State of Tamil Nadu (1996) 6 SCC 756.

groups, and encouraged the development of victim-centred approaches within the legal system.

These judgments illustrate how the judiciary has addressed trafficking not merely as an issue of criminal wrongdoing but as a violation of fundamental rights. By linking trafficking with constitutional guarantees such as dignity, liberty, and protection from exploitation, the Court has reinforced the idea that combating trafficking requires a broader human rights perspective.

### 4.3.1 Vishal Jeet v Union of India

One of the earliest instances in which the Supreme Court addressed the issue of trafficking in a comprehensive manner was the case of *Vishal Jeet v Union of India*[36]. The petition drew the Court's attention to the widespread exploitation of women and children in prostitution networks operating across different parts of the country. It was alleged that many minors were being recruited through deception or coercion and subsequently forced into commercial sexual exploitation.

In examining the matter, the Court recognized that trafficking involved complex social and economic factors that could not be addressed solely through criminal prosecution. The Court therefore directed both the central and state governments to establish advisory bodies responsible for developing strategies to prevent trafficking and to provide rehabilitation for victims.

[36] Vishal Jeet v Union of India (1990) 3 SCC 318.

The decision highlighted the importance of cooperation between law enforcement authorities and social welfare institutions. It also emphasized that individuals forced into prostitution should not be viewed primarily as offenders but as victims requiring protection and assistance. This perspective marked an important shift in judicial thinking by placing greater emphasis on rehabilitation rather than punishment.

### 4.3.2 Gaurav Jain v Union of India

The Supreme Court continued to expand its approach to trafficking-related issues in *Gaurav Jain v Union of India*[37]. This case focused on the social and legal challenges faced by children of women engaged in prostitution. The petitioner argued that such children often experienced discrimination, social exclusion, and limited access to education due to the stigma attached to their mothers' occupation.

In its judgment, the Court emphasized that children should not suffer disadvantages because of circumstances beyond their control. It observed that the state had an obligation to ensure that these children were provided with educational opportunities and support systems that would enable them to lead independent and dignified lives.

The Court also recognized the need for comprehensive rehabilitation programs for women who had been rescued from prostitution. It suggested that specialized institutions should be developed to provide counselling, education, and vocational training so that victims could pursue alternative livelihoods. By addressing the long-term welfare of both women and

[37] Gaurav Jain v Union of India (1997) 8 SCC 114.

children affected by trafficking, the judgment broadened the scope of judicial concern beyond immediate criminal enforcement.

### 4.3.3 Budhadev Karmaskar v State of West Bengal

Another significant development in the judicial discourse on trafficking and prostitution emerged from *Budhadev Karmaskar v State of West Bengal*[38]. The case initially involved the criminal conviction of an individual accused of murdering a sex worker. During the course of the proceedings, however, the Supreme Court expanded the scope of the case to consider the broader socio-legal issues affecting women involved in prostitution.

The Court observed that many individuals enter prostitution due to circumstances such as poverty, deception, or trafficking. Recognizing the vulnerability of such individuals, the Court emphasized that their basic rights and dignity must be respected. The judgment therefore underscored the importance of policies aimed at providing economic and social support to individuals who wished to leave prostitution.

To examine these issues in greater detail, the Court constituted a committee tasked with studying the conditions faced by sex workers and proposing measures to improve their welfare. The committee was expected to explore avenues for rehabilitation, social integration, and protection from exploitation.

This case demonstrated the Court's willingness to engage with the broader structural factors that contribute to trafficking and exploitation. By framing

[38] Budhadev Karmaskar v State of West Bengal (2011) 10 SCC 283.

the issue in terms of human dignity and social justice, the Court encouraged policymakers to adopt a more comprehensive approach to addressing the problem.

### 4.3.4 Prajwala v Union of India

Technological developments have introduced new dimensions to the problem of trafficking, particularly through the circulation of exploitative content on digital platforms. The Supreme Court addressed this issue in *Prajwala v Union of India*, where the petitioner highlighted the widespread distribution of videos depicting sexual violence and exploitation of women and children[39].

The Court recognized that the dissemination of such material could contribute to trafficking by normalizing exploitation and generating demand for abusive content. In response, it directed government authorities to develop mechanisms for preventing the circulation of such material and to improve coordination with internet service providers.

The Court also emphasized the importance of protecting the dignity and privacy of victims during investigations and judicial proceedings. By acknowledging the role of digital technologies in facilitating exploitation, the judgment reflected an evolving judicial awareness of the changing nature of trafficking in contemporary society.

### 4.3.5 State v. Shyamlal

**Facts of the Case**

[39] Prajwala v Union of India (2015) 16 SCC 255.

This case concerned the sexual assault and trafficking of a minor girl. The accused, Shyamlal, was alleged to have procured the victim and subjected her to sexual exploitation, as well as being involved in trafficking her for purposes of prostitution. The trial court either failed to properly evaluate the evidence or resulted in acquittal, which led to an appeal by the State.[40]

**Issues Involved**

The court considered the following issues:

- Whether the prosecution had successfully established the offence of rape of a minor.
- Whether the accused was involved in trafficking and procurement for prostitution.
- Whether the testimony of the victim alone was sufficient to sustain a conviction.

**Legal Provisions Involved**

- Sections 366A, 372, 373, and 376 of the Indian Penal Code
- Immoral Traffic (Prevention) Act, 1956

**Contentions**

**Prosecution:**

The State argued that the trial court erred in disregarding the credible testimony of the victim. It emphasized that in cases of sexual offences, the

[40] *State v. Shyamlal*, Sessions Case (Delhi) (2012) (unreported judgment).

statement of the victim carries significant evidentiary value, and minor inconsistencies should not result in acquittal.

**Defence:**

The defence challenged the reliability of the victim's testimony and highlighted inconsistencies in the evidence presented.

**Judgment:**

The High Court overturned the approach of the trial court and held that the testimony of a minor victim of rape does not require corroboration if it is trustworthy. The Court stressed the need for a sensitive judicial approach in cases involving sexual exploitation and trafficking and found the accused guilty based on credible evidence.

**Key Observations and Significance:**

The case reinforces the principle that reliable testimony of a victim is sufficient for conviction. It also underscores the need for courts to avoid stereotypes and biases while dealing with victims of sexual offences. Importantly, it strengthens a victim-centric approach in cases involving trafficking and sexual exploitation of minors.

### 4.3.6 M.C. Mehta v. Union of India (1996)

**Facts of the Case**

This public interest litigation was initiated by environmental activist M.C. Mehta, focusing on the widespread employment of children in hazardous industries such as match and fireworks factories, particularly in Sivakasi,

Tamil Nadu. The case highlighted exploitative working conditions, absence of safety measures, and violation of children's fundamental rights.[41]

**Issues Involved**

- Whether the employment of children in hazardous industries violates fundamental rights.
- What measures should be adopted to eliminate child labour.
- The extent of judicial intervention in labour welfare policies.

**Legal Provisions Involved**

- Article 21 (Right to life and dignity)
- Article 24 (Prohibition of child labour in hazardous employment)
- Articles 39(e) and 39(f)
- Child Labour (Prohibition and Regulation) Act, 1986

**Contentions**

**Petitioner:**

Argued that employment of children in hazardous industries is unconstitutional and violates human dignity. It was also contended that the State had failed to effectively enforce existing laws.

[41] *M.C. Mehta v. State of Tamil Nadu*, (1996) 6 SCC 756.

**Respondent (Union of India):**

Acknowledged the seriousness of the issue but cited socio-economic constraints and claimed that regulatory measures were being undertaken.

**Judgment**

The Supreme Court held that the employment of children in hazardous industries violates fundamental rights, particularly Article 24. It emphasized the constitutional duty of the State to protect children from exploitation.

**Directions Issued**

The Court laid down important directives, including:

- Prohibition of child labour in hazardous industries
- Payment of ₹20,000 compensation by offending employers
- Creation of a Child Labour Rehabilitation-cum-Welfare Fund
- Provision of education for rescued children
- Ensuring alternative livelihood for families
- Strengthening inspection and enforcement mechanisms

**Significance**

This judgment is a landmark in addressing child labour and exploitation. It introduced the concept of compensation and rehabilitation and expanded the scope of public interest litigation in the domain of social justice and labour rights.

**4.3.7 Sheela Barse v. Union of India**

In this case, the Supreme Court emphasized the importance of preserving the dignity of children in a civilized society. Referring to Article 39(f) of the Constitution, the Court highlighted the obligation of the State to ensure that children are provided opportunities to develop in a healthy environment with freedom and dignity, and are protected from exploitation and moral as well as material neglect.[42]

### 4.3.8 Khatri v. State of Bihar

The Supreme Court underscored the importance of Article 39A, which mandates the provision of free legal aid to individuals who are unable to afford legal representation. The Court linked this obligation to the protection of the right to life under Article 21. However, it also observed that in certain categories of offences, such as economic crimes or offences involving prostitution or child abuse, the requirement of providing free legal services may vary depending on the demands of social justice.[43]

### 4.3.9 Munni v. State of Maharashtra

The Court in this case recognized the duty of the State to ensure the protection and care of trafficked women and children. It emphasized that such individuals are highly vulnerable and require protection from both real and perceived threats to their life and dignity. The judgment also highlighted the role of socio-economic factors such as poverty, illiteracy, and lack of awareness in contributing to trafficking.[44]

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[42] *Sheela Barse v. Union of India*, (1986) 3 SCC 596.
[43] *Khatri (II) v. State of Bihar*, (1981) 1 SCC 627.
[44] *Munni v. State of Maharashtra*, 2006 Cri LJ 3038 (Bom).

The Court stressed the importance of providing psychological, social, and emotional support to victims. It also recognized the role of the Child Welfare Committee (CWC) in ensuring care, protection, and rehabilitation of trafficked children. The CWC was empowered to make decisions in the best interest of the child and to ensure their proper reintegration into society.

### 4.3.10 Prerna v. State of Maharashtra

The Bombay High Court held that while dealing with cases involving children, emphasis must be placed on reformation and rehabilitation. The Court clarified that under the Juvenile Justice (Care and Protection of Children) Act, 2000, only appropriate authorities such as the Juvenile Justice Board or Child Welfare Committee have jurisdiction over persons below 18 years of age.

It further observed that rescued children must undergo proper inquiry before being released and should only be handed over to guardians if found suitable. If guardians are deemed unfit, rehabilitation measures must be undertaken. The Court also placed restrictions on legal representation to prevent conflicts of interest, particularly prohibiting advocates representing traffickers from appearing for victims in the same matter.[45]

### 4.3.11 Upendra Baxi v. State of Uttar Pradesh

This case highlighted the severe conditions prevailing in protective homes for trafficked women. The matter originated from a letter describing

[45] *Prerna v. State of Maharashtra*, 2003 (2) Bom CR 1.

inhumane conditions in the Agra Protective Home, which was treated as a writ petition by the Supreme Court.

Over the course of several years, the Court issued comprehensive guidelines aimed at reforming the functioning of such institutions while remaining within the framework of the Immoral Traffic (Prevention) Act and the Constitution. The case was eventually transferred to the National Human Rights Commission for further monitoring.

The Court also directed that victims must be heard at every stage of proceedings and emphasized the need for the appointment of women police officers and advisory boards consisting of social workers to ensure better administration of justice.[46]

### 4.3.12 Public at Large v. State of Maharashtra

In this case, the Court took suo motu cognizance of the issue of minor girls being forced into prostitution. It directed the authorities to explain their inaction under relevant provisions of the Indian Penal Code and the Immoral Traffic (Prevention) Act.

The Court issued several directions, including:

- Formulation of a scheme for rescuing and rehabilitating women and minors from exploitative environments
- Establishment of specialized cells involving social workers for rehabilitation

[46] *Upendra Baxi v. State of Uttar Pradesh*, (1986) 4 SCC 106.

- Conducting HIV testing of willing sex workers to address public health concerns

This case reflects the proactive role of the judiciary in addressing trafficking and ensuring rehabilitation and public welfare measures.[47]

### 4.3.13 Judicial Principles and the Bharatiya Nyaya Sanhita, 2023

The jurisprudence developed by the Supreme Court in trafficking-related cases has, over time, articulated principles that were not fully reflected in statutory law. The enactment of the Bharatiya Nyaya Sanhita, 2023 (BNS), effective from 1 July 2024, can be understood as a legislative response to many of these judicial developments.

One of the most significant areas of convergence concerns the issue of consent. Judicial decisions consistently held that apparent consent obtained through deception, coercion, or exploitation of vulnerability cannot legitimise trafficking. However, under the Indian Penal Code, this principle existed primarily through interpretation rather than explicit statutory language. Explanation 2 to Section 143 of the BNS resolves this ambiguity by clearly stating that the consent of the victim is immaterial in determining the offence.[48]

A similar alignment can be observed in relation to official complicity. Courts have repeatedly expressed concern regarding the involvement of public officials in trafficking networks, identifying such conduct as a serious breach of constitutional obligations. The BNS directly addresses this issue

[47] *Public at Large v. State of Maharashtra*, 1996 Cri LJ 198 (Bom).
[48] Bharatiya Nyaya Sanhita 2023, s 143 Explanation 2.

through Section 143(7), which prescribes stringent punishment for public servants or police officers found to be involved in trafficking.[49]

The recognition of trafficking as an organised activity also reflects judicial observations made in earlier cases. Courts have noted that trafficking often operates through structured networks involving multiple actors. Section 111 of the BNS incorporates this understanding by classifying trafficking within the broader framework of organised crime, thereby enabling a more comprehensive enforcement response.[50]

The relationship between judicial interpretation and legislative reform in this area is therefore iterative. Judicial decisions have influenced statutory development, and the BNS now provides a framework within which these principles can be applied more effectively in practice.

### 4.3.14 Emerging Judicial Principles

An examination of these decisions reveals several key principles that characterize the judicial approach to trafficking in India. First, the courts increasingly view trafficking as a violation of fundamental rights rather than solely as a criminal offence. This perspective encourages a broader understanding of trafficking as a problem involving social justice and human dignity.

Second, judicial decisions frequently emphasize the importance of rehabilitation and reintegration for victims. Courts have repeatedly noted

[49] Bharatiya Nyaya Sanhita 2023, s 143(7).
[50] Bharatiya Nyaya Sanhita 2023, s 111.

that effective responses to trafficking must address the economic and social conditions that contribute to vulnerability.

Third, the judiciary has demonstrated a willingness to issue directions aimed at improving institutional responses to trafficking. These directions often involve recommendations for policy reform, coordination between agencies, and the development of support services for victims.

Taken together, these judicial interventions have played an important role in shaping the legal discourse on trafficking in India. Although legislative reforms remain essential for addressing the problem comprehensively, the judiciary has contributed significantly to advancing a rights-based approach to combating trafficking and protecting vulnerable individuals.

### 4.4 High Court Jurisprudence on Trafficking

Although the Supreme Court has delivered several foundational judgments concerning trafficking, High Courts across India also play a crucial role in shaping the day-to-day application of anti-trafficking laws. Because High Courts frequently deal with appeals, bail matters, and constitutional petitions arising from trafficking investigations, they are often confronted with the practical challenges that accompany the enforcement of these laws. Their decisions therefore provide important insight into how anti-trafficking statutes function within the broader criminal justice system.

A significant aspect of High Court jurisprudence concerns the **interpretation of consent and coercion in trafficking cases**. Individuals

accused of trafficking or exploitation often claim that victims voluntarily participated in prostitution or labour arrangements. High Courts have repeatedly examined such claims in light of the broader circumstances surrounding recruitment, transportation, and working conditions. In situations where evidence suggests deception, abuse of authority, or economic vulnerability, courts have emphasized that the presence of apparent consent cannot negate the existence of exploitation. This reasoning reflects the recognition that traffickers frequently rely on manipulation and misinformation rather than overt physical force.

Another important area addressed by High Courts relates to the **treatment of rescued individuals during the investigative process**. Courts have frequently emphasized that persons rescued from brothels or forced labour environments should not automatically be treated as offenders. Instead, they must be recognized as individuals who may have been compelled into exploitative circumstances. Consequently, High Courts have directed authorities to ensure that such individuals are provided access to protective homes, counselling services, and rehabilitation programs consistent with the relevant statutory frameworks.

High Courts have also intervened in cases involving **missing persons suspected of being trafficked**. Through the exercise of their constitutional jurisdiction, particularly under Articles 226 and 227 of the Constitution, courts have ordered investigations, directed law enforcement agencies to trace victims, and ensured that rescued persons are produced before appropriate authorities. Habeas corpus petitions have frequently served as a

mechanism through which families or social organizations seek judicial assistance in locating individuals believed to have been trafficked.

Judicial scrutiny at the High Court level has additionally exposed **investigative shortcomings in trafficking cases**. Courts have occasionally expressed concern regarding inadequate evidence collection, delays in filing chargesheets, and insufficient coordination between police departments operating in different jurisdictions. In response, High Courts have directed investigative agencies to adopt more rigorous procedures and to ensure that cases involving trafficking are handled with greater diligence.

The contribution of High Courts to anti-trafficking jurisprudence therefore lies not only in their interpretation of statutory provisions but also in their role as supervisory authorities ensuring that investigative and administrative processes function effectively. Through these interventions, High Courts have reinforced the principle that trafficking offences require careful handling in order to protect victims while holding perpetrators accountable.

Indian courts have consistently recognized trafficking as a grave violation of fundamental rights, particularly the right to life and dignity guaranteed under Article 21 of the Constitution.[51] The judiciary has not only addressed individual cases but has also issued directions aimed at strengthening institutional mechanisms for prevention, rescue, and rehabilitation of victims.

A notable example reflecting the judicial approach at the trial court level is *State vs Shymal Lal*. In this case, the court dealt with an organized

[51] Constitution of India 1950, Art 21; Maneka Gandhi v Union of India AIR 1978 SC 597

trafficking network involving the kidnapping and sale of a minor girl for the purpose of prostitution. The facts revealed a structured chain of actors engaged in the procurement, transfer, and eventual exploitation of the victim. The court relied upon provisions under Sections 372 and 373 of the Indian Penal Code, which criminalize the sale and purchase of minors for prostitution.[52]

What is particularly significant in this case is the manner in which the court evaluated evidence relating to recovery and custody of the victim. Despite procedural lapses such as non-joining of public witnesses and absence of local police coordination, the court accepted the prosecution's explanation that secrecy was necessary due to the sensitive nature of trafficking operations. This reflects a pragmatic judicial approach, wherein courts acknowledge the operational realities of trafficking investigations, including the involvement of organized networks and the risk of information leakage.

At the same time, the case also highlights systemic weaknesses in investigation procedures. The absence of independent witnesses, lack of documentary evidence linking the accused to the premises, and failure to involve local authorities point to gaps in enforcement mechanisms. Thus, judicial decisions in such cases not only determine guilt but also indirectly expose deficiencies in the investigative framework.

At the constitutional level, the Supreme Court has played a proactive role in addressing trafficking through public interest litigation. In *Vishal Jeet v. Union of India*, the Court recognized the increasing incidence of child

[52] Indian Penal Code 1860, ss 372 and 373

prostitution and directed both central and state governments to take effective measures to eradicate the problem. The Court emphasized the need for coordinated action, including the establishment of rehabilitation homes, provision of education, and socio-economic support for rescued victims. This judgment marked a shift from a purely punitive approach to a more welfare-oriented framework.[53]

Similarly, in *Prajwala v. Union of India*, the Supreme Court addressed the issue of trafficking in a broader context, including the circulation of exploitative content and the need for preventive strategies. The Court issued guidelines for the protection and rehabilitation of victims and stressed the importance of inter-agency coordination. The judgment also highlighted the role of civil society organizations in assisting state authorities, thereby recognizing the multi-dimensional nature of the problem.

A common thread running through these judicial pronouncements is the recognition that trafficking cannot be addressed solely through criminal law enforcement. Courts have repeatedly underscored the importance of rehabilitation, reintegration, and protection of victims from re-trafficking. This reflects a shift towards a victim-centric approach, which is essential in dealing with crimes of this nature.

However, despite progressive judicial interpretations, challenges remain in translating these principles into effective ground-level implementation. The gap between judicial directives and administrative execution continues to persist, thereby limiting the overall impact of such interventions.

[53] Vishal Jeet v Union of India (1990) 3 SCC 318.

In addition to expanding the scope of constitutional protections, the judiciary has also played a crucial role in interpreting the statutory provisions relating to trafficking under the Indian Penal Code. Section 370, introduced through the Criminal Law (Amendment) Act, 2013, provides a comprehensive definition of trafficking by incorporating elements such as recruitment, transportation, harbouring, and exploitation. Courts have increasingly adopted a purposive interpretation of this provision, recognizing that trafficking is not limited to physical movement but includes a broader spectrum of exploitative practices.

Judicial interpretation has clarified that the "consent" of the victim is immaterial in cases of trafficking, particularly where such consent is obtained through coercion, deception, or abuse of vulnerability. This approach aligns with international standards and reflects an understanding of the socio-economic conditions that compel victims into exploitative situations. By rejecting the defence of consent in such circumstances, courts have strengthened the prosecutorial framework and ensured that traffickers cannot escape liability on technical grounds.

Furthermore, courts have emphasized that trafficking is a continuing offence involving multiple actors at different stages of the process. This recognition is significant because it allows for the prosecution of not only those directly involved in the act of exploitation but also intermediaries, recruiters, transporters, and facilitators who contribute to the trafficking chain.[54] Such

[54] Bachpan Bachao Andolan v Union of India (2011) 5 SCC 1

an expansive interpretation is essential in dismantling organized trafficking networks, which often operate through well-coordinated structures.

Another important judicial trend is the increasing focus on the rights and dignity of victims during trial proceedings. Courts have acknowledged that victims of trafficking often suffer from severe psychological trauma and social stigma, which may affect their ability to testify. As a result, judicial approaches have gradually evolved to adopt a more sensitive and victim-friendly stance, including in-camera proceedings and protective measures to prevent further victimization.[55]

At the same time, judicial decisions reveal certain limitations in the practical enforcement of trafficking laws. While courts have interpreted the law progressively, their effectiveness is often constrained by deficiencies in investigation and prosecution. Cases such as *State vs Shymal Lal* demonstrate that even where courts are willing to adopt a pragmatic approach, the absence of robust evidence and procedural irregularities can weaken the overall case. Issues such as failure to collect corroborative evidence, lack of coordination among investigating agencies, and inadequate documentation continue to affect conviction rates.

Moreover, the judiciary has repeatedly highlighted the need for better implementation of existing legal frameworks rather than mere proliferation of new laws. Through various observations, courts have indicated that the problem lies not in the absence of legislation but in its ineffective enforcement. This reflects a broader judicial understanding that trafficking is

[55] State of Punjab v Gurmit Singh (1996) 2 SCC 384.

a complex socio-legal issue requiring coordinated action across multiple institutions.

Another emerging trend is the judiciary's engagement with policy and governance aspects of trafficking. Through public interest litigations, courts have issued directions to governments for the formulation of policies, establishment of rehabilitation mechanisms, and strengthening of institutional frameworks. While such interventions have been instrumental in shaping the anti-trafficking discourse, they also raise questions regarding the limits of judicial intervention in policy matters.

Critically, despite these progressive trends, there remains a significant gap between judicial pronouncements and ground-level realities. The effectiveness of judicial decisions ultimately depends on their implementation by executive authorities. In the absence of adequate infrastructure, trained personnel, and inter-agency coordination, even well-reasoned judgments may fail to achieve their intended impact.

### 4.5 Judicial Trends and Critical Evaluation

Reading the body of judicial decisions on trafficking across three decades, several trends become apparent. The most consistent is the progressive constitutionalisation of the issue — courts have increasingly located anti-trafficking obligations within the fundamental rights framework, particularly Article 21's guarantee of the right to life with dignity and Article 23's explicit prohibition on trafficking and forced labour. The BNS's legislative architecture reinforces this constitutional framing in its own way: Section

143(7)'s natural life imprisonment for public servant involvement reflects a legislative acknowledgement — long demanded by the judiciary — that official complicity in trafficking is not merely an aggravating criminal circumstance but a fundamental betrayal of state obligations towards the most vulnerable. Courts applying Section 143(7) will operate within a framework that is, for the first time, explicitly calibrated to the constitutional severity of that betrayal.

The second trend is the gradual recognition of trafficked persons as rights-bearing victims rather than as participants in illegal activity. The BNS reinforces this judicially-developed principle through Explanation 2 to Section 143, which makes victim consent immaterial to determination of the offence. Courts applying Section 143 will no longer need to navigate the doctrinal complexity that sometimes attended arguments about 'voluntary' participation under the IPC framework — the consent question is definitively settled by the statute itself, in terms that reflect the reasoning developed by the Supreme Court in Vishal Jeet, Gaurav Jain, and Budhadev Karmaskar.

The third trend — and the most problematic from a systemic perspective — is the gap between judicial direction and institutional implementation. The Supreme Court has repeatedly directed governments to establish anti-trafficking committees, develop rehabilitation infrastructure, and address enforcement failures. The BNS's introduction of Section 111 organised crime provisions covering trafficking creates a new institutional imperative: law enforcement agencies must now consider whether a trafficking operation meets the threshold of organised criminal activity, with the expanded

enforcement powers and forfeiture provisions that classification brings. Whether this legislative invitation will be accepted, or ignored as previous judicial invitations have been, is a question that only post-enactment practice can answer. The judicial trends this chapter identifies suggest that the normative framework is now well-developed; what is needed is the institutional will to act on it.

A further emerging trend in judicial reasoning is the growing recognition of the demand-side dimensions of trafficking. Earlier judicial interventions largely focused on rescue, rehabilitation, and prosecution of traffickers. However, more recent developments indicate an increasing awareness that trafficking is sustained by demand as well as supply.

This shift is reflected in cases such as *Prajwala v Union of India*, where the Supreme Court addressed the role of digital platforms in facilitating exploitation.[56] The legislative framework under the BNS corresponds with this approach. Section 144 targets individuals who knowingly exploit trafficked persons, while Section 111 addresses the financial and organisational structures that sustain trafficking networks.

The introduction of these provisions also creates new responsibilities for courts. Judicial interpretation will play a crucial role in determining the scope of liability under these sections, particularly in relation to knowledge, participation, and organised activity. The effectiveness of the BNS framework will therefore depend significantly on how courts apply these provisions in practice.

[56] *Prajwala v Union of India* (2015) 16 SCC 255.

### 4.6 Additional Judicial Interventions in Combating Human Trafficking

Indian constitutional courts have frequently intervened to address systemic failures in the protection of women and children from trafficking. Through public interest litigation and progressive interpretation of constitutional rights, the judiciary has attempted to bridge the gap between legislative intent and actual implementation.

One of the earliest interventions occurred in **Vishal Jeet v Union of India**, where the Supreme Court addressed the growing problem of child prostitution and trafficking. The Court observed that the commercial sexual exploitation of minors was not merely a criminal issue but a serious violation of human dignity. It directed the Central and State Governments to establish advisory committees to examine the functioning of existing laws and recommend measures for prevention, rescue, and rehabilitation of victims. The Court also emphasized the need for coordinated action between social welfare authorities, law enforcement agencies, and voluntary organisations.

Subsequently, in **Gaurav Jain v Union of India**, the Supreme Court examined the social realities that perpetuate prostitution and trafficking. The Court acknowledged that many women engaged in prostitution come from extremely disadvantaged socio-economic backgrounds. It therefore stressed the importance of rehabilitation programmes that provide education, employment opportunities, and social reintegration for both the women involved in sex work and their children.

Another important contribution of the judiciary can be seen in **Bandhua Mukti Morcha v Union of India**, where the Supreme Court expanded the interpretation of Article 23 of the Constitution relating to forced labour. The Court held that labour performed under conditions of economic compulsion or extreme poverty could amount to forced labour. This interpretation significantly broadened the legal framework addressing trafficking for labour exploitation.

Similarly, the Supreme Court in **People's Union for Democratic Rights v Union of India** clarified that payment of wages below the statutory minimum wage may constitute a form of forced labour prohibited under Article 23. This interpretation strengthened legal protections for vulnerable workers who may otherwise be exploited through trafficking networks.

Judicial concern regarding child labour and trafficking was further demonstrated in **M.C. Mehta v State of Tamil Nadu**, where the Court directed the establishment of a compensation and rehabilitation mechanism for children rescued from hazardous employment. Employers who violated child labour laws were required to contribute compensation to a welfare fund designed to support the rehabilitation and education of rescued children.

# CHAPTER 5

# POLICY GAPS AND IMPLEMENTATION FAILURES

***"Social justice is not a gift of the powerful to the powerless. It is a constitutional mandate that courts must enforce when other institutions fail."***

… Justice V.R. Krishna Iyer

## 5.1 Introduction

There is a particular kind of institutional failure that is harder to diagnose than outright illegality or wilful neglect. It is the failure that occurs when laws are enacted in good faith, programmes are designed with genuine ambition, and institutions are assigned clear responsibilities — and yet the problem the law was meant to solve continues essentially unabated. This is the failure that characterises India's anti-trafficking policy landscape, and it persists despite the significant legislative improvements the BNS represents.

The enactment of the Bharatiya Nyaya Sanhita, 2023, and specifically the commencement of its trafficking provisions on July 1, 2024, represents the most significant development in India's anti-trafficking criminal law in over a decade. Section 143's expansion of the definition of exploitation to include beggary, its graduated punishment structure providing clearer sentencing guidance to courts, its severe provision for public servant involvement under sub-section (7), and Section 111's classification of human trafficking as organised crime with forfeiture consequences — these are genuine improvements over the IPC framework. But they are improvements to the

legal text, not to the institutional infrastructure that determines whether legal text translates into effective protection. The policy failures examined in this chapter are not primarily failures of legislation. They are failures of implementation, coordination, and political will.

Section 111 of the BNS offers a useful illustration of this distinction between text and practice. On paper, the provision gives prosecutors the ability to pursue trafficking syndicates as organised criminal enterprises, to apply for forfeiture of property derived from trafficking, and to invoke penalties that extend to natural life imprisonment or death. In practice, deploying Section 111 against a trafficking network requires investigators trained in organised crime case construction, prosecutors experienced in building syndicate-level cases, and courts equipped to adjudicate complex forfeiture proceedings. None of these institutional capacities exist at adequate scale within India's anti-trafficking enforcement infrastructure as currently constituted. The legislative provision exists; the institutional capacity to use it does not. This gap — between what the BNS authorises and what enforcement agencies can deliver — is the defining feature of India's current policy position on trafficking.

This chapter examines implementation failures in four dimensions: legislative fragmentation, which the BNS partially but not fully resolves; enforcement failure, which the BNS's new provisions do not by themselves address; the inadequacy of victim protection and rehabilitation mechanisms, which the BNS as a criminal code does not govern at all; and the data deficit, which no current legislation mandates addressing. These four dimensions interact in ways that make the overall system less than the sum

of its parts, and no legislative reform of criminal sentencing, however well-designed, can substitute for the structural changes this chapter identifies as necessary.

## 5.2 Fragmentation within the Legal Framework

A major structural weakness in India's response to trafficking arises from the absence of a single comprehensive statute addressing the issue in its entirety. Instead, the legal framework consists of multiple laws that regulate specific forms of exploitation. While these statutes collectively cover several aspects of trafficking, their fragmented nature can create practical difficulties in enforcement and policy coordination.

For instance, the **Immoral Traffic (Prevention) Act, 1956** primarily addresses exploitation connected with prostitution, whereas the **Indian Penal Code** criminalizes trafficking and related offences through provisions such as Sections 370 and 370A corresponding section 98,99, 141,143 , 144, 145, 146 under **Bhartiya Nyaya Sanhita**. Additional legislation—including the **Protection of Children from Sexual Offences Act**, the **Juvenile Justice (Care and Protection of Children) Act**, and the **Bonded Labour System (Abolition) Act**—addresses particular forms of exploitation involving children or labourers[57].

Although each of these statutes plays an important role, their simultaneous application may complicate legal proceedings. Investigators and prosecutors

[57] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012; Juvenile Justice (Care and Protection of Children) Act 2015; Bonded Labour System (Abolition) Act 1976.

must often determine which legal provisions are most appropriate for a particular case. Because trafficking operations frequently involve multiple forms of exploitation, the application of different statutes may result in overlapping charges or procedural uncertainty.

Fragmentation also affects the **administrative structure responsible for implementing anti-trafficking measures**. Different government departments are tasked with enforcing different statutes, which can lead to inconsistent approaches across regions. For example, labour authorities may focus on forced labour cases while police departments concentrate on prostitution-related offences. Without a centralized framework coordinating these efforts, the overall response to trafficking may remain disjointed.

The lack of an integrated legal framework also complicates the development of uniform policies for victim protection. Some statutes emphasize criminal prosecution, while others prioritize rehabilitation and welfare measures. The absence of a coherent legislative structure means that victims may receive varying levels of assistance depending on the specific law under which their case is handled.

In recognition of these limitations, policymakers have proposed initiatives aimed at consolidating anti-trafficking measures within a single legal framework. Legislative proposals such as the **Trafficking in Persons (Prevention, Care and Rehabilitation) Bill** have sought to create specialized investigative bodies, improve coordination among enforcement agencies, and strengthen mechanisms for victim rehabilitation[58]. Although

[58] Trafficking in Persons (Prevention, Care and Rehabilitation) Bill 2018.

these proposals indicate increasing awareness of the need for reform, the process of establishing a comprehensive anti-trafficking statute remains ongoing.

From a policy perspective, the fragmented nature of existing legislation may reduce the effectiveness of anti-trafficking efforts by dispersing responsibilities across multiple institutions. A more unified legal structure could facilitate clearer definitions of offences, improve institutional coordination, and ensure that victim protection remains a central element of anti-trafficking policy.

A deeper difficulty arising from this fragmented legal structure is the lack of conceptual uniformity in how trafficking itself is understood across different statutes. While the Bharatiya Nyaya Sanhita adopts a broad and process-oriented definition of trafficking under Section 143, other laws such as the Immoral Traffic (Prevention) Act continue to approach exploitation through a narrower lens focused primarily on prostitution-related activities.[59] This divergence in conceptual approach creates interpretative inconsistencies, particularly in cases where trafficking involves multiple forms of exploitation, such as the intersection of sexual exploitation and forced labour.

The coexistence of these statutory frameworks often results in uncertainty at the stage of investigation and charge framing. Law enforcement authorities may invoke provisions under multiple statutes simultaneously, leading to overlapping charges that complicate prosecution. In some instances,

[59] Bharatiya Nyaya Sanhita 2023, s 143, Explanation 1

emphasis is placed on provisions that are easier to prove procedurally rather than those that most accurately reflect the gravity of the offence. This may dilute the legal characterization of trafficking and reduce the possibility of securing convictions under more stringent provisions.[60]

Another significant consequence of fragmentation is the absence of a clearly designated nodal authority responsible for coordinating anti-trafficking efforts across different sectors. Responsibility is distributed among various agencies, including police departments, labour authorities, and child protection institutions, each operating within its own statutory mandate. While this multi-agency approach is intended to address the diverse dimensions of trafficking, the lack of a centralized coordinating mechanism often leads to gaps in communication, duplication of efforts, and delays in response.

Fragmentation also affects judicial proceedings by introducing complexity in the application of legal provisions. Courts are frequently required to interpret and reconcile overlapping statutory frameworks in individual cases. This can result in inconsistent judicial outcomes, particularly where different courts adopt varying approaches to the interaction between criminal law provisions and welfare-oriented legislation. Such inconsistencies may undermine the predictability of legal outcomes and weaken the deterrent effect of anti-trafficking laws.[61]

[60] Ministry of Home Affairs, Standard Operating Procedures (SOPs) for Anti-Human Trafficking Units (MHA, New Delhi, 2019)
[61] Bachpan Bachao Andolan v Union of India (2011) 5 SCC 1

In addition, the fragmented structure of the legal framework complicates the development of standardized procedures for victim identification and case handling. Different statutes prescribe different processes and institutional responsibilities, which may lead to variation in how victims are identified, classified, and assisted. In the absence of uniform guidelines, similarly situated victims may receive different forms of legal and institutional support depending on the specific statutory framework applied in their case.

These challenges indicate that fragmentation is not merely a structural issue but a functional limitation that affects every stage of the anti-trafficking response, from investigation to adjudication and rehabilitation. While existing laws collectively address various aspects of trafficking, their lack of integration reduces the overall effectiveness of the system. A more coherent and coordinated legal framework would therefore enhance clarity, improve enforcement efficiency, and ensure that anti-trafficking efforts are guided by a consistent understanding of the offence.

### 5.3 Limitations in Enforcement and Institutional Coordination

The presence of statutory provisions addressing trafficking does not automatically guarantee effective control of the crime. The success of anti-trafficking laws depends heavily on the ability of enforcement institutions to investigate offences, protect victims, and prosecute offenders. In India, however, several structural weaknesses within the enforcement system have limited the impact of existing legislation.

One of the principal challenges concerns the complexity of trafficking networks. Trafficking operations often involve multiple intermediaries responsible for recruitment, transportation, accommodation, and exploitation of victims. These networks frequently operate across state boundaries and, in some cases, across international borders. Investigating such activities requires specialized expertise, access to reliable intelligence, and coordination among multiple enforcement agencies. In many situations, however, investigative authorities lack the training and resources necessary to pursue these complex cases effectively.

Another significant difficulty arises from institutional fragmentation among agencies responsible for combating trafficking. Different government departments address different dimensions of the problem. Police agencies typically focus on criminal prosecution, labour departments handle issues related to forced labour, while child protection authorities deal with cases involving minors. Although each of these institutions plays an important role, insufficient coordination between them often results in gaps in enforcement.

For example, when victims are rescued from exploitative labour environments, cooperation between police authorities and labour inspectors becomes essential to ensure that both criminal accountability and labour protections are enforced. In practice, however, communication between these institutions may be limited, resulting in delays or incomplete investigations. Such coordination failures can weaken legal proceedings and reduce the likelihood of successful prosecution.

A further concern involves the limited capacity of investigative agencies to collect and present evidence in trafficking cases. Successful prosecution requires the establishment of several elements, including recruitment, transportation, and exploitation. Gathering evidence for each stage of the trafficking process can be difficult, particularly when victims have been moved across multiple locations or when traffickers rely on informal recruitment methods that leave little documentary evidence.

Victims themselves may also be reluctant to participate in legal proceedings. Fear of retaliation from traffickers, economic dependence, and social stigma can discourage survivors from cooperating with investigators or testifying in court. In the absence of effective witness protection measures and victim support services, these factors may significantly weaken prosecution efforts.

In addition to these challenges, certain regions have reported instances where trafficking networks operate with the assistance of local intermediaries who facilitate recruitment or transportation of victims. When such intermediaries possess social influence within their communities, law enforcement agencies may encounter additional difficulties in disrupting trafficking operations.

To address some of these issues, the government has established specialized investigative structures such as Anti-Human Trafficking Units (AHTUs) within several states. These units are intended to enhance coordination between law enforcement agencies and social welfare organizations. While the establishment of such units represents a positive development, their effectiveness depends on sustained training, adequate funding, and continuous institutional support.

Overall, weaknesses in enforcement and institutional coordination remain significant obstacles in the fight against trafficking. Without improved investigative capacity and stronger collaboration among relevant agencies, existing laws may fail to produce the desired impact in preventing exploitation.

A critical dimension of enforcement failure lies in the low rate of successful prosecution and conviction in trafficking cases. Despite the existence of stringent legal provisions, the conversion of reported cases into convictions remains limited. This gap is often attributable not to the absence of legal tools, but to deficiencies in investigative practices and evidentiary standards. Trafficking cases typically involve complex chains of actors and covert operations, requiring a high degree of coordination and professionalism in evidence collection. However, investigations frequently rely on incomplete documentation, weak witness testimony, and inadequate corroborative material, thereby weakening the prosecutorial foundation.

One recurring issue is the failure to adopt a victim-centred approach during investigation. Victims of trafficking often experience severe psychological trauma and may be reluctant or unable to provide consistent testimony. In the absence of appropriate support mechanisms, their statements may appear contradictory or unreliable, which can adversely affect the outcome of the case. Law enforcement agencies often lack the necessary training to handle such sensitive situations, resulting in the loss of crucial testimonial

evidence.[62] This highlights the need for specialized investigative procedures that account for the vulnerabilities of victims.

The challenges of enforcement are further compounded by the limited use of scientific and forensic methods in trafficking investigations. In many cases, there is insufficient reliance on digital evidence, financial trails, call records, or other technological tools that could establish links between different actors within trafficking networks. Given the organized nature of trafficking, the failure to utilize such methods significantly reduces the ability of authorities to dismantle entire networks, leading instead to the prosecution of only lower-level offenders.

In addition, coordination failures between different law enforcement agencies contribute to ineffective enforcement. Trafficking operations often span multiple jurisdictions, requiring collaboration between local police, specialized anti-trafficking units, and sometimes inter-state authorities. However, lack of communication, jurisdictional hesitation, and administrative delays frequently hinder such coordination. As a result, investigations remain fragmented, and critical leads may not be pursued in a timely manner.

The practical challenges of enforcement are also reflected in judicial observations in trafficking-related cases. In *State vs Shymal Lal*, for instance, the court noted several procedural shortcomings, including the absence of independent witnesses and lack of coordination with local authorities during the rescue operation. While the court adopted a pragmatic approach in

[62] Protection of Children from Sexual Offences Act 2012, ss 24–26

evaluating the available evidence, such deficiencies highlight systemic weaknesses in investigation that can undermine the strength of prosecution.[63] These gaps not only affect individual cases but also reflect broader structural issues within enforcement mechanisms.

Another important aspect is the limited application of provisions dealing with organized crime and conspiracy. Trafficking is rarely an isolated act; it is typically carried out by networks involving recruiters, transporters, intermediaries, and exploiters. However, enforcement agencies often focus on individual acts rather than the larger network, resulting in partial accountability. The inadequate invocation of provisions addressing organized criminal activity reduces the deterrent impact of the law and allows trafficking networks to continue operating.

Furthermore, issues of corruption and lack of accountability cannot be overlooked in the context of enforcement failures. In certain instances, complicity or negligence on the part of officials may facilitate trafficking activities or hinder effective investigation. The absence of strong oversight mechanisms and internal accountability systems further exacerbates this problem, reducing public trust in law enforcement institutions.

These enforcement challenges indicate that the effectiveness of anti-trafficking laws is significantly dependent on the capacity and functioning of implementing agencies. Strengthening enforcement requires not only legal reform but also institutional development, including training, resource allocation, technological integration, and accountability mechanisms.

[63] State v Shymal Lal (Trial Court proceedings under Indian Penal Code 1860, ss 372 and 373).

Without addressing these systemic issues, the gap between law and its implementation is likely to persist.

### 5.4 Challenges in Victim Protection and Rehabilitation

An effective response to trafficking must extend beyond the punishment of offenders and include meaningful support for individuals who have been subjected to exploitation. Survivors of trafficking frequently experience severe physical, psychological, and social consequences as a result of their experiences. Consequently, policies addressing trafficking must incorporate comprehensive rehabilitation strategies aimed at enabling victims to rebuild their lives.

In India, several mechanisms have been introduced to assist trafficking survivors, including shelter homes, counselling services, and vocational training programs. These initiatives are intended to provide temporary protection and facilitate the eventual reintegration of survivors into society. However, the availability and effectiveness of such services vary widely across different regions.

One significant concern relates to the limited capacity and infrastructure of rehabilitation facilities. Many shelter homes operate with restricted financial resources and insufficient professional staff. As a result, survivors may not receive the level of psychological counselling or vocational guidance necessary for long-term recovery. Overcrowded facilities can further reduce

the effectiveness of rehabilitation programs and may create environments that do not adequately address the needs of victims.

Reintegration into society presents another major challenge for trafficking survivors. Individuals who have been subjected to exploitation often face negative social perceptions when attempting to return to their communities. In certain cases, families may hesitate to accept survivors due to social stigma or concerns regarding community reputation. These social barriers can isolate survivors and complicate their efforts to rebuild stable lives.

Economic vulnerability also remains a critical factor affecting rehabilitation outcomes. Many individuals who become victims of trafficking originate from economically marginalized backgrounds. After being rescued, they may struggle to obtain stable employment or access educational opportunities. Without sustainable livelihood options, survivors may remain vulnerable to further exploitation.

Psychological recovery represents an equally important dimension of rehabilitation. Survivors of trafficking frequently endure prolonged periods of abuse, coercion, and deprivation. These experiences may lead to long-term mental health challenges, including anxiety, depression, and trauma-related disorders. Effective rehabilitation therefore requires access to professional mental health services, yet such services are not always adequately integrated into existing support programs.

Another important consideration involves the legal treatment of survivors during criminal proceedings. Historically, individuals involved in prostitution or certain forms of labour exploitation were sometimes treated

as offenders rather than victims. Recent legal developments and judicial decisions have increasingly emphasized that trafficked persons should be recognized as victims entitled to protection and assistance. However, the consistent implementation of this principle across different jurisdictions remains a continuing challenge.

Addressing these issues requires a more comprehensive rehabilitation framework that integrates social welfare policies with legal protections. Effective rehabilitation programs must include economic empowerment initiatives, mental health support, educational opportunities, and community awareness campaigns aimed at reducing stigma. Only through such multidimensional strategies can the long-term well-being of trafficking survivors be ensured.

A significant concern within the existing framework of victim protection is the overemphasis on rescue as the primary response to trafficking, often at the expense of long-term rehabilitation and reintegration. While rescue operations are essential for removing victims from exploitative environments, they are frequently treated as an end in themselves rather than the beginning of a comprehensive recovery process. This approach may result in situations where victims are physically removed from one form of exploitation only to face new forms of institutional dependency and uncertainty.[64]

The reliance on institutional care, particularly in the form of protective and rehabilitation homes, raises important questions regarding the quality and

[64] Upendra Baxi v State of Uttar Pradesh (1983) 2 SCC 308

effectiveness of such mechanisms. In many instances, these institutions lack adequate infrastructure, trained personnel, and oversight. Victims may be subjected to restrictive conditions, limited mobility, and inadequate access to education, healthcare, and psychological support. Such environments, instead of facilitating recovery, may contribute to further trauma and alienation.

Another critical issue is the absence of individualized rehabilitation plans tailored to the specific needs of victims. Trafficking victims are not a homogeneous group; their experiences, vulnerabilities, and recovery requirements vary significantly. However, existing rehabilitation mechanisms often adopt a standardized approach that fails to account for these differences. The lack of personalized support, including vocational training, counselling, and community-based reintegration strategies, reduces the likelihood of successful recovery and increases the risk of re-trafficking.

The problem of re-trafficking is closely linked to deficiencies in rehabilitation and follow-up mechanisms. Without sustainable livelihood opportunities and social support, victims may be compelled to return to exploitative situations. This highlights the need for a long-term perspective in victim protection, extending beyond immediate rescue and short-term shelter. Effective reintegration requires continuous monitoring, economic empowerment, and social acceptance, which are often inadequately addressed within the current framework.

Legal processes themselves can also pose challenges to victim protection. Victims are frequently required to participate in lengthy judicial proceedings, which may expose them to intimidation, social stigma, and

psychological stress. In the absence of robust witness protection mechanisms, victims may be reluctant to testify or may withdraw from the process altogether. This not only affects their own pursuit of justice but also weakens the prosecution's case against traffickers.

Furthermore, there is often a lack of clarity regarding the rights of victims within the legal system. While laws recognize the need for protection and rehabilitation, the practical realization of these rights remains inconsistent. Access to compensation, legal aid, and support services is often uneven, depending on the region and the effectiveness of local authorities. This inconsistency undermines the principle of equality and may result in differential treatment of similarly situated victims.

Another important dimension is the limited involvement of victims in decision-making processes concerning their rehabilitation. In many cases, decisions regarding placement in institutions, participation in programs, or repatriation are made without adequately considering the preferences and consent of the victims themselves. This paternalistic approach may inadvertently undermine the autonomy and dignity of individuals who have already experienced significant loss of control over their lives.

The challenges associated with victim protection also reflect broader societal attitudes towards trafficking. Social stigma and discrimination against survivors often hinder their reintegration into communities. Victims may face rejection by their families or communities, further isolating them and increasing their vulnerability. Addressing these societal barriers is essential for creating an environment that supports recovery and prevents re-exploitation.

In light of these issues, it becomes evident that victim protection must move beyond a rescue-centric model towards a rights-based and empowerment-oriented approach. This requires not only strengthening institutional mechanisms but also ensuring that rehabilitation strategies are comprehensive, inclusive, and responsive to the diverse needs of victims. Without such a shift, the protective framework risks remaining incomplete and ineffective.

### 5.5 Assessment of Government Rehabilitation and Prevention Schemes

In addition to legislative efforts, the Indian government has introduced several policy initiatives designed to address the social consequences of trafficking and support individuals who have been rescued from exploitative situations. Among these initiatives, the **Ujjawala Scheme** and the **Swadhar Greh Scheme** are particularly significant, as they aim to provide assistance to women who have experienced exploitation, abandonment, or other forms of social vulnerability. While these programs reflect an important policy commitment to victim welfare, their practical effectiveness depends largely on the quality of implementation and the availability of institutional resources.

The **Ujjawala Scheme**, implemented by the Ministry of Women and Child Development, was specifically developed to address trafficking of women and children for sexual exploitation. The program attempts to address the problem through a multi-dimensional strategy that includes preventive awareness programs, rescue operations, temporary shelter, rehabilitation

services, and eventual reintegration of survivors into society[65]. By combining preventive and rehabilitative elements, the scheme seeks to reduce the risk of trafficking while simultaneously assisting individuals who have already experienced exploitation.

One of the central components of the scheme is the establishment of shelter facilities where rescued individuals can receive temporary accommodation, medical treatment, psychological counselling, and vocational training. These services are intended to assist survivors in recovering from trauma and developing the skills necessary to achieve financial independence. In principle, this integrated approach acknowledges that trafficking cannot be effectively addressed without supporting the long-term recovery of victims.

However, the implementation of the scheme has encountered several difficulties. In certain regions, the availability of designated rehabilitation centres remains limited, which can delay the provision of support services to rescued individuals. Even where such centres exist, they may face shortages of trained personnel and financial resources. These limitations can reduce the effectiveness of rehabilitation programs and restrict the range of services available to survivors.

Another important concern involves the **evaluation and monitoring of program outcomes**. Effective rehabilitation requires continuous assessment of whether survivors are able to reintegrate into society and maintain stable livelihoods after leaving institutional care. In many cases, however,

[65] Ministry of Women and Child Development, Government of India, Ujjawala Scheme for Prevention of Trafficking and Rescue, Rehabilitation and Reintegration of Victims (2007).

systematic monitoring mechanisms are insufficiently developed, making it difficult to determine the long-term success of rehabilitation initiatives.

The **Swadhar Greh Scheme** represents another government initiative designed to assist women who lack adequate social or family support. This program provides temporary shelter and assistance to women facing difficult circumstances, including survivors of trafficking, victims of domestic violence, and women who have been abandoned by their families[66]. The scheme aims to provide basic necessities such as housing, food, medical care, and counselling services while also offering opportunities for skill development and employment.

Through these measures, the program attempts to address the economic and social vulnerabilities that may expose women to exploitation. By helping beneficiaries develop vocational skills and secure employment opportunities, the scheme seeks to promote long-term independence and reduce the likelihood that survivors will become vulnerable to further exploitation.

Despite these objectives, the program faces challenges similar to those affecting other rehabilitation initiatives. Inadequate funding, shortage of professional staff, and limited availability of specialized counselling services may reduce the effectiveness of assistance provided to beneficiaries. In addition, social stigma and lack of employment opportunities may make it difficult for survivors to reintegrate into their communities even after receiving institutional support.

[66] Ministry of Women and Child Development, Government of India, Swadhar Greh Scheme (2015).

These limitations suggest that rehabilitation policies require stronger institutional support and more comprehensive monitoring systems. Improved coordination between government agencies and civil society organizations could enhance the delivery of services and ensure that survivors receive consistent assistance during the recovery process.

While government schemes represent an important component of the anti-trafficking framework, their effectiveness is often constrained by challenges in implementation, monitoring, and accessibility. Although initiatives such as rehabilitation and reintegration programs are designed with a welfare-oriented objective, the gap between policy formulation and ground-level execution remains a significant concern.

One of the primary limitations of these schemes is the lack of uniform implementation across different states and regions. Variations in administrative capacity, resource allocation, and institutional efficiency result in uneven delivery of benefits. In some areas, schemes are implemented with relative effectiveness, while in others, beneficiaries face delays, inadequate support, or complete exclusion from available services. This inconsistency undermines the objective of creating a standardized and reliable support system for victims of trafficking.[67]

Another critical issue is the limited awareness of such schemes among intended beneficiaries. Victims of trafficking, particularly those from marginalized backgrounds, often lack access to information regarding their entitlements. In the absence of effective outreach mechanisms, many

[67] National Audit of Ujjawala Scheme implementation.

individuals remain unaware of available support services, including financial assistance, rehabilitation programs, and legal aid. This information gap reduces the overall impact of government initiatives and restricts their reach.

The implementation of schemes also suffers from inadequate monitoring and evaluation mechanisms. There is often a lack of systematic assessment of whether the intended objectives of these programs are being achieved. Without robust monitoring frameworks, it becomes difficult to identify shortcomings, address inefficiencies, and ensure accountability among implementing authorities. This may lead to situations where schemes exist in principle but fail to deliver meaningful outcomes in practice.

Dependence on non-governmental organizations (NGOs) for the execution of various components of these schemes presents both opportunities and challenges. While NGOs play a crucial role in providing ground-level support, their capacity and effectiveness may vary significantly. In the absence of proper regulation and coordination, this reliance can result in disparities in the quality of services provided to victims. Additionally, insufficient funding and support for such organizations may further limit their ability to deliver consistent and sustainable assistance.

Financial constraints also affect the functioning of government schemes. Delays in the disbursement of funds, inadequate budget allocations, and bureaucratic hurdles can hinder timely assistance to victims. Rehabilitation, in particular, requires sustained financial support, including access to

education, vocational training, and livelihood opportunities. Without consistent funding, such programs may fail to achieve long-term impact.[68]

Another area of concern is the limited focus on outcome-based rehabilitation. Many schemes emphasize immediate relief measures but do not sufficiently address long-term reintegration into society. The absence of follow-up mechanisms to track the progress of beneficiaries makes it difficult to assess whether victims have successfully transitioned to independent and secure livelihoods. This gap increases the risk of re-trafficking and reduces the overall effectiveness of rehabilitation efforts.

Furthermore, coordination between different schemes and departments is often inadequate. Anti-trafficking initiatives intersect with various sectors, including social welfare, labour, health, and education. However, the lack of integrated planning and execution leads to fragmented service delivery. Victims may be required to navigate multiple agencies to access different forms of assistance, which can be both time-consuming and discouraging.

These challenges indicate that while government schemes are an essential part of the anti-trafficking response, their success depends on effective implementation, coordination, and accountability. Strengthening these aspects is crucial to ensure that such initiatives move beyond policy intent and translate into tangible support for victims. A more integrated and outcome-oriented approach would significantly enhance the role of government schemes in addressing trafficking of women and children.

[68] Ministry of Women and Child Development, Government of India, Swadhar Greh Scheme for Women in Difficult Circumstances (2015)

### 5.6 Deficiencies in Data Collection and Policy Planning

Reliable information regarding the scale and characteristics of trafficking is essential for developing effective strategies to address the problem. Accurate data enables policymakers to identify vulnerable populations, allocate resources efficiently, and evaluate the success of existing programs. However, the availability of comprehensive data on trafficking in India remains limited, which creates significant obstacles for policy planning.

One of the primary challenges arises from the **underreporting of trafficking incidents**. Victims may hesitate to report exploitation due to fear of retaliation, social stigma, or lack of trust in authorities. In addition, trafficking often occurs in informal labour sectors or hidden environments where exploitation may remain undetected for long periods. As a result, official statistics may capture only a portion of the total number of trafficking cases.

Another difficulty stems from the **fragmented nature of data collection across different institutions**. Various government agencies maintain records related to trafficking within their respective areas of responsibility. Police authorities document criminal cases, labour departments monitor forced labour violations, and child protection agencies track cases involving minors. Because these records are maintained separately, it can be challenging to develop a comprehensive picture of trafficking patterns across the country.

The absence of integrated databases also affects the ability of authorities to track trafficking networks that operate across multiple jurisdictions. Trafficking frequently involves the movement of victims from one state to another, and in some cases across international borders. Without effective information-sharing mechanisms, law enforcement agencies may struggle to identify connections between cases occurring in different regions.

In addition to administrative limitations, the lack of extensive empirical research on trafficking dynamics further complicates policy development. Detailed studies examining the socioeconomic factors that contribute to trafficking remain relatively limited. Greater investment in interdisciplinary research could help identify the underlying conditions that enable trafficking networks to operate and assist policymakers in designing targeted prevention strategies.

Improving data collection systems therefore represents a crucial step in strengthening anti-trafficking policy. The development of centralized databases, enhanced cooperation between government agencies, and greater support for academic research could significantly improve the ability of policymakers to understand trafficking patterns and respond effectively.

Ultimately, the effectiveness of anti-trafficking policies depends not only on legal frameworks but also on the availability of reliable information and well-coordinated institutional strategies. Strengthening data systems and research initiatives can therefore contribute to more informed policy decisions and more effective prevention measures.

A fundamental challenge in addressing trafficking effectively is the absence of a comprehensive and reliable data collection system. Existing data sources, including official crime statistics, provide only a partial representation of the scale and nature of trafficking. This limitation arises from both structural deficiencies in data collection mechanisms and the inherent difficulties associated with identifying and reporting trafficking cases.

One of the primary concerns is the issue of underreporting. Trafficking is often a hidden crime, occurring in clandestine environments where victims are isolated and controlled. Fear of retaliation, social stigma, lack of awareness, and distrust of law enforcement agencies discourage victims from reporting their experiences. In many cases, families and communities may also be reluctant to approach authorities due to concerns about reputation or social consequences. As a result, a significant proportion of trafficking cases remain unreported, creating a substantial gap between actual incidence and recorded data.

In addition to underreporting, there are inconsistencies in how trafficking cases are recorded and classified. Different agencies may adopt varying criteria for identifying trafficking offences, leading to discrepancies in data. For instance, cases involving missing persons, forced labour, or child exploitation may not always be categorized under trafficking, even when elements of trafficking are present. This fragmented approach to data classification reduces the accuracy and reliability of available statistics.

Another important limitation is the lack of a centralized and integrated database on trafficking. Data related to trafficking is often maintained

separately by different agencies, such as police departments, child welfare institutions, and labour authorities. The absence of a unified system for data sharing and coordination makes it difficult to track cases across jurisdictions, identify patterns, and monitor the progress of investigations and rehabilitation efforts. This fragmentation not only hampers enforcement but also limits the ability of policymakers to develop targeted interventions.

The quality of data collected is also a matter of concern. In many instances, records lack detailed information regarding the nature of exploitation, the socio-economic background of victims, and the operational methods of traffickers. Such gaps in data restrict the scope of analysis and hinder the formulation of evidence-based policies. Without comprehensive data, it becomes challenging to understand emerging trends, identify high-risk areas, and allocate resources effectively.

Moreover, there is limited use of technology in data collection and analysis. Advanced tools for data integration, real-time tracking, and predictive analysis are not adequately utilized in the anti-trafficking framework. The absence of technological integration reduces the efficiency of data management and limits the capacity of authorities to respond proactively to trafficking activities.

The lack of reliable data also affects the evaluation of existing policies and programs. Without accurate information, it is difficult to assess the effectiveness of legal measures, government schemes, and institutional mechanisms. This creates a situation where policies may continue to operate without sufficient evidence of their impact, thereby reducing accountability and hindering necessary reforms.

Addressing these challenges requires the establishment of a robust and integrated data management system. The creation of a centralized database that consolidates information from various agencies would enhance coordination and improve the accuracy of data. Standardized protocols for data collection and classification should also be developed to ensure consistency across jurisdictions. Additionally, the use of technology should be strengthened to facilitate real-time monitoring and analysis.

In conclusion, data deficiency and underreporting represent significant obstacles in the fight against trafficking. Without reliable and comprehensive data, both enforcement and policy formulation remain constrained. Strengthening data systems is therefore essential for developing an informed, targeted, and effective response to trafficking of women and children.

# CHAPTER 6

# FINDINGS, SUGGESTIONS AND CONCLUSION

***"The Constitution does not merely prohibit exploitation — it obligates the state to dismantle the conditions that make exploitation possible."***

…Justice D.Y. Chandrachud

## 6.1 Introduction

Human trafficking continues to represent one of the most serious violations of human rights in the contemporary world. The trafficking of women and children, in particular, involves severe forms of exploitation including sexual exploitation, forced labour, domestic servitude, and other forms of coercion. Such practices violate fundamental rights and undermine the dignity and liberty of individuals. International organizations and national governments have therefore recognized trafficking as a major global challenge requiring coordinated legal and policy responses.

India has enacted several laws addressing different forms of trafficking and exploitation. Legislative measures such as the *Immoral Traffic (Prevention) Act, 1956*, provisions of the *Indian Penal Code*, and the *Protection of Children from Sexual Offences Act, 2012* provide legal mechanisms to prosecute trafficking-related offences.[69] Despite these measures, trafficking networks continue to operate across different regions of the country.

[69] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012.

The persistence of trafficking indicates that legal frameworks alone are insufficient unless accompanied by effective enforcement mechanisms, institutional coordination, and comprehensive rehabilitation programs for survivors. International instruments such as the **United Nations Palermo Protocol** emphasize that combating trafficking requires a multidimensional strategy involving prevention, prosecution, and protection of victims.[70]

This dissertation has examined the problem of trafficking of women and children in India through an analysis of the legal framework, judicial responses, and policy gaps affecting implementation. It has also compared India's anti-trafficking approach with international models adopted in other jurisdictions.

## 6.2 Major Findings of the Study

### 6.2.1 Trafficking as a Multidimensional Social Problem

One of the primary findings of this research is that trafficking cannot be understood solely as a criminal activity. Instead, it must be viewed as a complex social phenomenon influenced by economic, social, and cultural factors.

Poverty, unemployment, gender discrimination, and lack of educational opportunities create conditions that increase the vulnerability of individuals to trafficking. Traffickers frequently exploit these vulnerabilities by offering deceptive promises of employment, marriage, or financial security.

[70] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

Women and children from marginalized communities are particularly susceptible to trafficking because they often lack access to social protection and legal awareness. Migration patterns also play a crucial role, as individuals who migrate in search of economic opportunities may be exposed to exploitative labour conditions[71].

The multidimensional nature of trafficking suggests that legal enforcement alone cannot eliminate the problem. Effective responses must address the underlying social and economic factors that contribute to vulnerability.

### 6.2.2 Fragmentation of the Legal Framework

Another important finding relates to the fragmented structure of India's legal framework addressing trafficking. Several statutes regulate different aspects of trafficking, including:

- The **Immoral Traffic (Prevention) Act, 1956**
- Provisions of the **Indian Penal Code and Bhartiya Nyaya Sanhita.**
- The **Protection of Children from Sexual Offences Act, 2012**
- The **Juvenile Justice Act, 2015**
- The **Bonded Labour System (Abolition) Act, 1976**

Although these laws collectively address various forms of exploitation, their overlapping provisions sometimes create confusion regarding enforcement responsibilities.

[71] International Labour Organization, Global Estimates of Modern Slavery (ILO 2017).

Investigators often rely on multiple statutes when prosecuting trafficking cases, which can complicate legal proceedings. The absence of a single comprehensive anti-trafficking law may therefore weaken the overall effectiveness of the legal framework.[72]

### 6.2.3 Judicial Contribution to Anti-Trafficking Jurisprudence

The study also reveals that the judiciary has played an important role in shaping India's anti-trafficking framework. Through landmark decisions, courts have expanded the interpretation of trafficking laws and emphasized the protection of victims' rights.

Judgments such as **Vishal Jeet v Union of India**, **Gaurav Jain v Union of India**, and **Budhadev Karmaskar v State of West Bengal** have highlighted the need for rehabilitation programs and institutional reforms to address exploitation.

The judiciary has consistently recognized trafficking as a violation of fundamental rights, particularly the right to dignity and freedom from exploitation under the Constitution of India.

However, judicial intervention alone cannot address the broader structural challenges associated with trafficking. Effective implementation of judicial directives requires coordinated action from legislative and executive institutions.

### 6.2.4 Weak Enforcement Mechanisms

Another major finding of the study relates to weaknesses in enforcement

[72] Trafficking in Persons (Prevention, Care and Rehabilitation) Bill 2018.

mechanisms. Investigating trafficking networks is often difficult because such networks operate through complex chains involving recruiters, transporters, and exploiters.

Law enforcement agencies may face challenges in collecting evidence, identifying victims, and tracing the entire trafficking chain. Limited training and resources further complicate investigations.

Low conviction rates in trafficking cases also indicate weaknesses in the criminal justice system. Victims may hesitate to testify due to fear of retaliation, social stigma, or lack of confidence in authorities.

### 6.2.5 Inadequate Rehabilitation and Victim Support

The study also identifies significant shortcomings in rehabilitation programs designed to assist trafficking survivors.

Although government schemes such as **Ujjawala** and **Swadhar Greh** aim to provide shelter and rehabilitation services, their implementation varies widely across different states. Many rehabilitation facilities suffer from shortages of funding, trained staff, and psychological counselling services.

Without adequate economic opportunities and social support, survivors may remain vulnerable to re-trafficking.

## 6.3 Suggestions and Policy Recommendations

### 6.3.1 Adoption of a Comprehensive Anti-Trafficking Law

India would benefit from the adoption of a unified anti-trafficking law that consolidates existing legal provisions. Such legislation could establish clear

definitions of trafficking offences, strengthen investigative mechanisms, and integrate victim protection measures within a single framework.

A comprehensive statute could also clarify the roles and responsibilities of different enforcement agencies.

### 6.3.2 Strengthening Institutional Coordination

Effective anti-trafficking strategies require cooperation among multiple government agencies including police departments, labour authorities, child protection institutions, and social welfare organizations.

Establishing centralized coordination mechanisms and specialized anti-trafficking units could improve communication between these agencies and enhance the effectiveness of enforcement efforts.

### 6.3.3 Expansion of Rehabilitation Programs

Rehabilitation policies should focus on long-term empowerment of survivors rather than short-term institutional care.

Programs providing vocational training, employment opportunities, and psychological counselling could help survivors rebuild independent lives and reduce the risk of re-trafficking.

Partnerships between government institutions and non-governmental organizations could improve the delivery of rehabilitation services.

### 6.3.4 Strengthening Data Collection Systems

Reliable data is essential for understanding trafficking patterns and designing effective policy responses.

India should develop centralized databases that integrate information from law enforcement agencies, labour departments, and child protection authorities. Improved data collection would enable policymakers to identify vulnerable regions and allocate resources more effectively.

### 6.3.5 Increasing Public Awareness

Public awareness campaigns can play an important role in preventing trafficking by educating communities about deceptive recruitment practices and available legal protections.

Community participation and civil society engagement are essential for identifying trafficking networks and supporting victims.

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## 6.4 Legislative Reforms

An effective response to trafficking requires a strong and coherent legislative framework capable of addressing the complex nature of

trafficking crimes. Although India has enacted several laws that directly or indirectly address trafficking, the current legal framework remains fragmented and dispersed across multiple statutes. This fragmentation often creates difficulties in interpretation, enforcement, and coordination among the agencies responsible for combating trafficking.

One of the most significant reforms required is the **adoption of a comprehensive anti-trafficking statute** that consolidates existing legal provisions. At present, trafficking-related offences are addressed under different laws such as the *Immoral Traffic (Prevention) Act, 1956*, relevant provisions of the *Indian Penal Code and Bhartiya Nyaya Sanhita*, the *Protection of Children from Sexual Offences Act, 2012*, and the *Bonded Labour System (Abolition) Act, 1976*.[73] While these statutes address particular forms of exploitation, they do not provide a unified framework capable of addressing trafficking in all its forms.

A comprehensive anti-trafficking law should clearly define the various elements of trafficking, including recruitment, transportation, harbouring, and exploitation. It should also recognize the different manifestations of trafficking that exist in contemporary society, such as forced labour, sexual exploitation, domestic servitude, child labour, and trafficking for illegal adoption or organ removal. The definition of trafficking provided under **Section 370 of the Indian Penal Code**, which was introduced through the Criminal Law (Amendment) Act, 2013, represents an important step in this

[73] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012; Bonded Labour System (Abolition) Act 1976.

direction.[74] However, further legislative clarity is required to ensure effective implementation.

Another important aspect of legislative reform concerns the **strengthening of victim protection provisions**. Existing laws often focus primarily on criminal punishment of offenders but provide limited attention to the long-term welfare of survivors. Legislative reforms should therefore incorporate provisions ensuring access to rehabilitation services, legal assistance, medical care, and psychological counselling for victims of trafficking. International instruments such as the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons (Palermo Protocol)** emphasize the importance of protecting victims and safeguarding their rights.[75]

In addition, legislation should establish clear procedures for **victim identification and rescue operations**. In many cases, victims may initially be treated as offenders under laws relating to prostitution or illegal migration. Legal reforms must therefore emphasize that trafficked persons should be recognized primarily as victims entitled to protection and assistance rather than as individuals liable for prosecution.

Legislative reforms should also address the **regulation of recruitment agencies and labour intermediaries**, which often play a significant role in facilitating trafficking. Introducing stricter licensing requirements, monitoring mechanisms, and penalties for fraudulent recruitment practices

[74] Indian Penal Code 1860, s 370 (inserted by Criminal Law (Amendment) Act 2013).
[75] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000) supplementing the United Nations Convention against Transnational Organized Crime.

could help reduce the risk of exploitation. Similar regulatory measures have been adopted in several countries to prevent labour trafficking in sectors involving migrant workers.

Another area requiring legislative attention is the **strengthening of investigative and prosecutorial mechanisms**. Specialized anti-trafficking units and dedicated courts could ensure that trafficking cases are investigated and adjudicated efficiently. Establishing fast-track procedures for trafficking cases may also help reduce delays within the criminal justice system and increase conviction rates.

Furthermore, legislation should incorporate provisions promoting **inter-agency coordination and data sharing** among law enforcement authorities, labour departments, immigration authorities, and child protection institutions. A centralized national database on trafficking cases could facilitate better policy planning and enable authorities to identify trafficking patterns across different regions.

Finally, legislative reforms should align India's domestic laws more closely with international standards established under global legal instruments. Compliance with international obligations not only strengthens domestic legal frameworks but also enhances international cooperation in combating transnational trafficking networks.

### 6.5 Suggestions and Legal Reforms

The persistence of trafficking in women and children despite the existence of multiple legal provisions highlights the need for a more comprehensive and effective approach. While India has developed a substantial legal framework to address trafficking, the challenges in implementation, coordination, and victim protection necessitate significant reforms. The following suggestions aim to strengthen the existing system and provide a more holistic response to the issue.

One of the foremost requirements is the harmonization of existing laws. The presence of multiple statutes such as the Indian Penal Code, the Immoral Traffic (Prevention) Act, and the Juvenile Justice Act has led to fragmentation and inconsistency in enforcement. There is a need to develop a unified legal framework or ensure effective coordination among these laws to eliminate ambiguity and enhance clarity in their application. Clear guidelines should be established to define the relationship between these statutes and to ensure their complementary functioning.

Strengthening the implementation machinery is equally important. Law enforcement agencies must be provided with specialized training to deal with trafficking cases, particularly in areas such as victim identification, evidence collection, and handling of sensitive situations. Dedicated anti-trafficking units should be adequately staffed and equipped to carry out investigations effectively. Regular monitoring and evaluation mechanisms should also be introduced to ensure accountability in enforcement.

A victim-centric approach must be at the core of any anti-trafficking strategy. Victims should be treated as individuals in need of protection rather than as offenders. Legal provisions that indirectly criminalize victims,

particularly those related to solicitation, should be reconsidered. Greater emphasis must be placed on the rehabilitation and reintegration of victims, including access to education, healthcare, psychological support, and livelihood opportunities. Rehabilitation programs should be designed in a manner that respects the dignity and autonomy of victims, enabling them to rebuild their lives independently.

Improving coordination among various institutions is another critical area for reform. Effective collaboration between law enforcement agencies, judiciary, social welfare departments, and non-governmental organizations is essential for a comprehensive response to trafficking. Mechanisms should be established to facilitate information sharing and joint action among these stakeholders. A centralized database on trafficking cases and victims could also help in improving coordination and tracking progress.

Preventive measures must also be strengthened by addressing the root causes of trafficking. Policies aimed at poverty alleviation, education, and employment generation can significantly reduce vulnerability to trafficking. Special attention should be given to marginalized communities, including women and children from economically weaker sections. Awareness programs should be conducted to educate individuals about the risks of trafficking and the means to seek help.

The role of technology in combating trafficking should be effectively utilized. Digital platforms can be used for tracking trafficking networks, monitoring suspicious activities, and disseminating awareness. At the same time, regulatory measures should be implemented to prevent the misuse of technology by traffickers for recruitment and exploitation.

Judicial processes should also be made more efficient and sensitive to the needs of victims. Fast-track courts for trafficking cases can help in ensuring timely justice. Witness protection mechanisms should be strengthened to encourage victims to participate in legal proceedings without fear. Additionally, guidelines should be developed to ensure that court proceedings are conducted in a manner that minimizes trauma for victims.

Another important reform is the need for better data collection and research. Reliable data on trafficking is essential for understanding its scope and developing effective policies. Efforts should be made to improve reporting mechanisms and ensure accurate documentation of cases. Research studies focusing on emerging trends and patterns of trafficking can provide valuable insights for policy formulation.

International cooperation is also crucial in addressing trafficking, particularly in cases involving cross-border networks. India should continue to collaborate with other countries and international organizations to strengthen mechanisms for information sharing, extradition, and joint investigations. Adherence to international conventions and standards can further enhance the effectiveness of domestic laws.

In conclusion, combating trafficking in women and children requires a multi-dimensional approach that goes beyond legal provisions. While strengthening the legal framework is essential, equal emphasis must be placed on effective implementation, victim protection, and socio-economic development. A coordinated and holistic strategy, supported by strong institutional mechanisms and public awareness, is necessary to address this complex and deeply rooted issue.

## Conclusion

This research set out to examine three dimensions of India's response to the trafficking of women and children: the legal framework that governs it, the judicial response that has shaped its interpretation, and the policy gaps that have undermined its effectiveness. Across all three dimensions, the same fundamental tension has been apparent: between the formality of India's anti-trafficking commitments and the inadequacy of the institutional infrastructure deployed to honour them.

India has a constitutional prohibition on trafficking. It has criminal statutes that cover most major forms of exploitation. It has signed the Palermo Protocol and other international instruments that impose obligations of prevention, prosecution, and victim protection. It has a Supreme Court that has repeatedly and forcefully articulated a rights-based framework for addressing trafficking. What it has not had — consistently, seriously, and at scale — is the institutional will to translate these formal commitments into effective protection for the women and children they are meant to serve.

The reforms identified in this chapter are not aspirational; they are achievable. Comprehensive anti-trafficking legislation has been drafted and debated. Institutional models for specialised enforcement exist in other jurisdictions and have been tested in Indian pilot programmes. Rehabilitation frameworks that deliver measurable outcomes have been developed by NGOs operating within India's existing institutional environment. The data architecture required for evidence-based policy is technically feasible and

financially modest relative to the scale of the problem it would address. The question is not whether India can build a more effective anti-trafficking system. The question is whether it will choose to.

The cost of not choosing — measured in the lives of women and children exploited each year in conditions that existing law is supposed to prevent — is not abstract. It is concrete, documented, and continuing. This research, in identifying where the system fails and what would be required to make it work better, aims to contribute — however modestly — to the case for the institutional seriousness that India's anti-trafficking commitments have long demanded and seldom received.

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